LANDPLAN
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rural community planning & zoning services

Date: August 7, 2015

To: Lincoln Township Planning Commission, Township Board and Zoning Administrator

From: Mark A. Eidelson, AICP

Re: Additional Draft Portions of the New Zoning Ordinance; Articles 3 - 5, and 20 -22

Attached are additional draft portions of the new Zoning Ordinance. The material is contained within a single stapled packet containing the following:

1. This memo
2. Updated Table of Contents
3. Articles 3 – 5
4. Articles 20 – 22

The staple should be removed and each Article should be inserted into the open Article locations made part of the first submittal (April 25, 2015). The original Table of Contents should be discarded and replaced with the enclosed update.

The accompanying material consists largely of zoning district provisions (Articles 3 and 4), miscellaneous supplemental provisions (Article 20), definitions (Article 21) and various legal clauses (Article 22). There are several places in the text which may reference Articles or Sections that you have not received yet. You may want to highlight these references for future review. This submittal is based, in part, on our previous Blueprint Meetings and the decisions made during these meetings, and professional discretion on my part.

Please review this material carefully and identify revisions you feel are beneficial, provisions you feel need discussion and exploration, or questions you may have. I am scheduled to meet with the Planning Commission on September 24 (10:00 a.m.) to begin reviewing this submittal. I encourage other officials to submit any concerns in writing to the Planning Commission during the time leading to the meeting so that they may be considered at the review meeting(s).

This material is "DRAFT". Officials should review the material carefully and identify any wording or provisions of concern and/or issues requiring further discussion and exploration. I fully recognize officials may not be comfortable with one or more (or many) of the suggested changes, and it is my responsibility to ensure the final draft addresses the concerns of officials.

Please review the following important summary pages before you begin reading these additional portions of the draft zoning ordinance.

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Article 3, Zoning Districts, Regulations, and Map

Article 3 presents the principal provisions pertaining to the districts including the purpose of each district, the uses permitted in each district, and the basic site development standards for each district. Most of the provisions are presented in tabular form. An initial draft Zoning Map will be submitted in the near future. The overall structure for the Districts is generally based on the current Ordinance's provisions, along with the introduction of a "Planned Unit Development District".

1. Table 3-1 identifies the purpose of each proposed District.
2. Table 3-2 and 3-3 identify the principal uses permitted in each District. A community can exercise considerable discretion regarding what uses should be permitted in each District and which should be permitted "by right" (subject to plot plan/site plan approval) versus by "special land use" (subject to site plan review and a public hearing) The two tables are based on a number of factors including the current Zoning Ordinance, the Master Plan, and discussions during past Blueprint Meetings, and professional discretion on my part.
3. Table 3-4 identifies the basic site development requirements for each District (lot area, width, etc.).

   Please note that Footnotes 6 and 7 provide increased flexibility for nonconforming lots and/or comparatively small lots in the R-2 District. An R-2 lot that does not comply with the minimum required 100' lot width is permitted to have a side yard setback equal to 10% of the lot width, but not less than 5' (10' normally required). An R-2 lot that has a lot depth of less than 100' is permitted to have a rear yard setback equal to 25% of the lot depth, but not less than 20' (25' normally required). By example only, in the case of a 50' wide by 80' deep lot, this increased flexibility affords an additional approximately 450 sq. ft. of building area (provided compliance with building/lot coverage standards).

   Officials may also want to consider including in the Ordinance a provision that grants all lots, irrespective of size, the ability to have a minimum of 750 sq. ft. (or more) of building area, to accommodate (at a minimum) the required 750 sq. ft. dwelling area.

***Please see pages 7 – 12 of this correspondence for a* Summary Comparison of Existing Districts and Draft Ordinance Districts.**

Also, it will be beneficial to review the scope of terms and definitions in draft Article 21 before reviewing draft Article 3 (Zoning Districts) as the definitions in Article 21 have the greatest bearing on Article 3.

Article 4, Planned Unit Development (PUD) District

Planned unit developments (PUDs) allow for projects that may well be viewed as beneficial to the Township but, because of the limitations of the conventional zoning district standards in which the parcel is located, such a project cannot be pursued (such as a mixed use development consisting of commercial and residential uses).

The current Zoning Ordinance in effect is silent on the matter of PUDs. Officials had expressed interest during one of our Blueprint Meetings in seeing how the PUD provisions may work and as such, comprise draft Article 4.

According to draft Article 4, PUD approval requires a rezoning of the subject property to a "PUD District" designation and the rezoning is tied to a preliminary site plan. Actual construction cannot be initiated until a final site plan is submitted and approved. There are multiple instances where Article 4 emphasizes that a PUD is not intended to undermine the planning policies of the Township or be otherwise inconsistent with the Master Plan.

Article 5: Reserved for Future Use

This Article is reserved for future use to address district matters that may arise as part of a lengthy amendment and that would not be appropriate to include in any of the other district Articles.

Article 20: Supplemental Provisions

This Article addresses numerous miscellaneous zoning issues, many of which are not specific to particular districts. Below is a summary of each Section in this Article with particular attention to how the subject matter relates to the current Ordinance in effect, including instances where substantive changes have been made.

Section 20.2 – Conditional Approvals, provides the basis for conditions that may be attached to certain approvals, and is largely an exact excerpt from the Zoning Enabling Act. It is included in this Article rather than duplicating the provisions throughout the ordinance such as in the case of site plan approval, special land use approval, and variances. The current Ordinance in effect does not address this matter.

Section 20.3 – Moving Buildings, generally corresponds to Section 1503 of the current Ordinance in effect.

Section 20.4 – Essential Services, generally corresponds to the regulatory part of the definition of essential services in the current ordinance in effect.

Section 20.5 – One Dwelling Unit / Principal Use per Lot, clarifies that only one dwelling may be established on a lot unless the Ordinance expressly provides otherwise, and that only one principal use may be established on a lot except within a Commercial District and where expressly authorized according to an approved site plan. The current Ordinance in effect does not clearly address these matters.

Section 20.6 –Single Family Dwelling Standards, carries forward the substance of Section 1519 of the current Ordinance in effect except that a new provision, subsection A(5), has been inserted that requires certification for units constructed prior to 1976. In addition, new provisions have been inserted addressing sewage disposal and potable water, roof drainage, and construction materials (subsections A(9), (10), and (11)). Also note that the current minimum required 720 sq. ft. floor area is addressed in subsection A(1).

Section 20.7 - Temporary Dwellings, authorizes temporary dwellings and generally corresponds to Sec. 1520 of the current ordinance in effect, but there a number of substantive differences:

1. Section 20.7(A) permits temporary dwellings in association with a permanent dwelling under repair, a scenario the current Ordinance does not address. Section 20.7(A) also restricts temporary housing to mobile homes and recreational vehicles. The current ordinance in effect appears to allow anything to be used as a temporary dwelling (tent, basement, etc.).
2. Draft Section 20.7(B) clarifies that the temporary dwelling may be placed in any yard, subject to the same district setbacks applicable to the permanent dwelling. The Section also permits the Zoning Administrator to reduce the setbacks by up to 50%. The current ordinance in effect requires ZBA action on such a reduction (variance). This change was made because an emergency housing condition may well not lend itself to deferring action to the ZBA (far less timely). In addition, because of the nature of temporary dwellings, the typical variance approval standards are not relevant.

Section 20.8 – Recreational Vehicles as Temporary Dwellings on Vacant Lots, presents a set of provisions to replace Sec. 1521 of the current Ordinance in effect. The draft provisions are more clear and comprehensive and are generally based on the discussions during a Blueprint Meeting.

Section 20.9, Accessory Buildings and Structures, generally corresponds to Sec. 1502 of the current Ordinance in effect. Substantive differences are:

1. Contrary to Sec. 1502(1), draft subsection (A) provides that an attached garage shall be considered an accessory building.
2. Draft subsection (C)1 more clearly clarifies that accessory buildings are prohibited in a front yard (unrelated to a waterfront lot) except where an application meets specific standards.
3. Subsection (C)2 requires that accessory building setbacks comply with the principal building setbacks rather than the 5' setback of the current Ordinance. However, (C)(2) does permit a 5' setback for accessory buildings of 120 sq. ft. or less.
4. Contrary to Sec. 1502(4) which establishes a maximum building height of 14' in residential districts, draft subsection (D) provides that the maximum height shall be twenty-five (25) feet, to afford increased

flexibility. However, (D) also provides that the minimum required setback shall be increased by one (1) foot for each one (1) foot of building height in excess of fifteen (15) feet. See the definition of "building height" in Article 21.

5. As requested, draft subsection (E)(3) presents a more flexible approach to the total square foot area of all accessory buildings based on district and/or lot area. The draft provisions generally allow for increased total floor area as the lot acreage increases. Please keep in mind the increased setbacks required by subsection (D) for buildings greater than 15' in height.

6. Subsection (H) presents more specific provisions addressing the erection of accessory buildings prior to the principal structure. The primary difference between (H) and the current Ordinance is that outside of the RR District and R-2 waterfront lots, an accessory building may be established on a on a lot prior to the establishment of a principal structure only after the erection of the principal structure's foundation and all first floor framing.

Section 20.10 – Home Occupations, presents a set of provisions very different than the current Ordinance in effect. The principal differences are as follows:

1. The current Ordinance in effect classifies all occupations as special land uses. Draft Section 20.10(A) and (B) establish two classes of home occupations with varying approval procedures. Class 1 occupations are those contained in the dwelling and are subject to Zoning Administrator approval. Class 2 occupations are contained in an accessory structure or are otherwise outdoors, or do not comply with the standards applicable to Class 1 home occupations, and are classified as a special land use (subject to a public hearing and site plan approval).
2. The current Ordinance prohibits employees except those that reside in the dwelling. Draft Sec. 20.10 expressly permits one additional employee to be on the premises for the purpose of receiving daily instructions for work to be performed elsewhere.

Section 20.11 – Fences and Walls, addresses residential and non-residential fences and walls. The Section generally corresponds to Section 1506 of the current Ordinance in effect. Draft Section 20.11 is substantively similar to the current Ordinance except as follows:

1. Sec. 20.11 provides that where a proposed fence or wall is within 20' of a dwelling on an abutting lot, the finished side of the fence or wall shall face the abutting lot. The current Ordinance is silent on this matter.
2. Sec. 20.11 provides that fences and walls with barbs, spikes, nails, or other sharp or electrified devices are prohibited. The current Ordinance is silent on this matter.
3. Sec. 20.11 provides that fencing and walls shall be maintained in good exterior and structural condition. The current Ordinance is silent on this matter.

Section 20.12 – Residential Outdoor Living Areas (Terraces, Patios, and Decks), addresses setback exceptions for decks and similar features that are no greater than 8" above grade. The current Ordinance does not permit exceptions.

Section 20.13 – Outdoor Display, Sales and Storage, addresses a matter about which the current Ordinance is silent or otherwise vague.

Section 20.14 – Shoreline Alteration, prohibits the alteration of shorelines except according to required approvals. The current Ordinance is vague regarding this matter.

Section 20.15 – Outdoor Parking and Storage of Recreation Vehicles and Watercraft, addresses a matter about which the current Ordinance is silent. The provisions address setback and vehicle registration matters only.

Section 20.16 – Farm Markets, requires that farm markets (roadside stands) comply with the most current Generally Accepted Agricultural Management Practices (GAAMPs) as published by the Michigan Agriculture Commission, and presents standards regarding setbacks and parking spaces. The Right to Farm Act provides that a local unit of government shall not enact, maintain, or enforce an ordinance, regulation, or resolution that conflicts in any manner with any GAAMPs unless first approved by the state. However, the township does have the authority to regulate matters pertaining to farm market setbacks, signage, driveways and parking, if so desired. The definition of "farm market" in Article 21 is directly tied to the Farm Market GAAMPs referenced above. Persons interested in viewing the GAAMPs for Farm Markets/Roadside Stands can find them at *www.michigan.gov/righttofarm*.

The substantive differences between draft Section 20.14 and Sec. 1421 of the current ordinance in effect are that draft Section 20.14 requires compliance with the GAAMPS, requires access drives to be a minimum of twenty (20) but no greater than thirty (30) feet in width, and requires a minimum of 8 off-street parking spaces – the current ordinance only specifies an "adequate" number of spaces.

Section 20.17 – Outdoor Residential Swimming Pools, presents somewhat expanded provisions about outdoor swimming pools as compared to Sec. 1422 of the current ordinance in effect, addressing application/approval procedures and requiring that no pool shall be located under electrical wires and similar utility devices. Please take note of the definition for "swimming pool" in Article 21.

Section 20.18 – Outdoor Furnaces presents provisions addressing outdoor furnaces including their authorization and applicable standards. The current ordinance is silent on this matter. As requested, no minimum lot area is required. However, based on the draft standards, the resulting minimum lot area will be approximately ¼-acre and may be substantially more if other dwellings are nearby (required 200' setback from other dwellings).

Section 20.19 – Medical Marihuana authorizes and transfer and growing of medical marihuana in compliance with the Medical Marijuana Act, and expressly prohibits retail storefronts, smoke clubs and other uses that go beyond the provision of medical marijuana between a registered caregiver and a registered patient.

Section 20.20 – Clear Vision Zones carries forward the substance of Sec. 1504 of the current ordinance in effect, but also extends to driveways serving commercial, industrial and similar off-street parking areas.

Section 20.21 – Prohibited Vehicles, does not correspond to any provisions of the current Ordinance in effect, and establishes limitations on the parking of large vehicles in all districts.

Section 20.22 – Lighting, provides more comprehensive provisions addressing lighting as compared to the one paragraph of Section 1505 of the current Ordinance in effect.

Section 20.23 – Site Condominiums, is intended to ensure site condominiums are subject to the same standards and review procedures as more traditional platted subdivisions. The current Ordinance is silent on this matter.

Section 20.24 – Keeping of Animals as Accessory Residential Use, presents provisions addressing the keeping of animals as accessory residential uses and does NOT apply to farms. The current Ordinance in effect addresses this matter to a limited extent only, requiring minimum lot area of 5 acres but presenting no additional standards. The provisions do not regulate how many dogs or cats a household may maintain, provided the activity does not constitute a kennel, but does address waste management, noise, and containment issues (subsection C). Kennel regulations will be presented in the next draft ordinance submittal (Article 18).

Section 20.25– Temporary Non-Residential Buildings and Uses does not correspond to any provisions of the current Ordinance in effect. The provisions address temporary activities including large public gatherings. The garage sale provisions carry forward the substantive elements of Sec. 1409 of the current Ordinance in effect.

Article 21, Definitions

Article 21 includes important terms and definitions. The vast majority of the definitions in the current Lincoln Township Zoning Ordinance in effect, and draft Article 21, are similar in substance but not identical in wording. The wording has been revised throughout in an effort to present the terms in a clearer manner, provide important clarifications of the definitions, address contemporary issues and matters of law, and maintain consistent wording throughout the body of the Ordinance. You will also note that the scope of defined terms in draft Article 21 is far greater than in the current Ordinance in effect – to minimize variable interpretations and encourage consistent and defensible zoning administration and enforcement.

It will be beneficial to review the scope of terms and definitions in draft Article 21 before reviewing draft Article 3 (Zoning Districts) as the definitions in Article 21 have the greatest bearing on Article 3.

Please note the following:

1. Omitted Terms: There are terms included in the current Ordinance in effect that have not been included in draft Article 21. They have been omitted because the same terminology is not used in the draft Ordinance, or the terms are adequately described in the body of the Ordinance so that a separate definition in Article 21 is not necessary, or the specific term in the current Ordinance in effect is not actually used in the balance of the current Ordinance in any regulatory manner. By example only, the phrases "architectural features," "industrial park"

and “undeveloped land” are defined in the current ordinance in effect but are not used in the balance of the ordinance.

Please note that the lengthy list of definitions associated with “sexually oriented businesses” and “signs” will be presented in Article 16 and Article 18 respectively, in which the specific topic will be addressed. This will minimize the need for the reader to have to continuously go back and forth to Article 21 when reviewing these subject matters.

2. New Terms: Numerous terms in draft Article 21 are “new” in that they are not included in the definitions section of the current Ordinance in effect including, but not limited to:

Abutting	*Driveway*	*Recycling center*
Adjacent	*Extraction operation*	*Restaurant*
Assisted living facilities	*Landscaping services*	*Retreat Center*
Berm	*Livestock*	*Shooting range*
Building inspector	*Lot, waterfront*	*Story, half*
Cemetery	*Marina*	*Shooting Range*
Certificate of Occupancy	*Mini-storage*	*Special land use*
Campground	*Plot plan*	*Truck terminal*
Day care center	*Public facility*	*Vehicle/Car Wash*
		Veterinary Clinic

3. Substantive Modifications: In some cases, substantive changes have been made to the definitions included in the current Ordinance in effect. For example:
   a. Unlike the current Ordinance in effect, draft Article 21 only defines terms and does not include regulatory standards in the definitions. It is generally not recommended to mix regulations with definitions as it leads to variable interpretation, undermining of administration efforts, and conflicting provisions. Regulatory standards regarding specific uses and structures are (or will be) addressed elsewhere in the draft Ordnance.
   b. The draft definition of “farm market” replaces the current ordinance’s references to “roadside stands,” and the definition is far more developed to correlate with the GAAMPs adopted under the Right to Farm Act. The definition is directly tied to the “farm market” definition in the GAAMPs.
   c. Unlike the current Ordinance in effect, draft Article 21 presents a definition for “frontage.”
   d. Unlike the current Ordinance in effect, the definition for “home occupation” establishes two classes of occupations. Article 21 refers the reader to Sec. 20.10 of Article 20 for the specific definitions of each.
   e. Unlike the current Ordinance in effect, the definition for “home occupation” establishes two classes of occupations. Article 21 refers the reader to Sec. 20.10 of Article 20 for the specific definitions of each.
   f. As requested during a Blueprint Meeting, the draft definition for “waterfront lot” (“lot, waterfront”) is specific to lakes only, and no longer makes reference to lots with frontage on streams and other water courses.
   g. Unlike the current Ordinance in effect, draft Article 21 presents a definition for “restaurant” as well as the several alternative types of restaurants. The additional definitions are provided because some restaurants are permitted “by right” while others are classified as “special land uses” (according to Table 3-3 of Article 3).
   h. The draft definition for “setback” includes a clarification regarding when to and not to include steps, porches and related features when determining setback compliance. It is my understanding that this issue has been problematic under the current Ordinance. This clarification is intended to resolve this matter and ensure consistent administration and minimize variable interpretation.

i. Draft Article 21 defines (generally) a "commercial stable" ("Stable, Commercial") as a facility where six or more horses may be present on the lot at any single time, irrespective of compensation, and/or where horse shows, training exhibitions, riding academies, riding lessons, or similar events and activities are conducted. This definition is in contrast to the current Ordinance's definition which defines commercial stables solely on the basis of compensation ("commercial purposes'). Under the current Ordinance, a stable that houses two personal horses and one boarded horse (for a fee) would constitute a commercial stable and be subject to a public hearing and special land use review. The draft definition focuses on the number of horses and the availability of the facility to the general public. This suggested definition may provide desirable flexibility. See also Section 20.24 regarding the keeping of animals (subsection D).

Article 22, Interpretation, Severability, Vested Right, Repeal, and Effective Date

Article 22 presents common "boiler plate" legal provisions and is similar in substance to the current Ordinance in effect (Sections 103, 104 and 105), and goes beyond to address "interpretation" provisions.

Summary Comparison of Existing Districts and Draft Ordinance Districts

The information presented in this Summary Comparison strives to highlight zoning district differences between the current Zoning Ordinance in effect and the attached draft Article 3 (August 7, 2015). A clear and comprehensive comparison is challenging due to the vagueness (in instances) of the current Ordinance and the differing wording used by the two documents. Still, this summary reasonably captures the principle departures from the current Ordinance in effect.

Part 1 Summary Comparison

Relationship Between Draft Article 3 Districts and Current Ordinance Districts

NEW ORDINANCE DISTRICTS	CORRESPONDING CURRENT DISTRICT
RR Rural Residential ➔	R-R Rural Residential
R-1 Low Density Residential ➔	R-1 Single-Family Residential
R-2 Medium Density Residential ➔	R-2 Single-Family/Two-Family Residential
R-MF Multiple Family ➔	R-3 Multiple Family Residential
R-MHC Manufactured Housing Community ➔	R-4 Manufactured Home Park
C-1 Local Commercial ➔	C-1 Central Business
C-2 General Commercial ➔	C-2 General Commercial
I-1 Light Industrial ➔	I-1 Light Industrial
I-2 Utility Industrial ➔	I-2 Utility Industrial
PUD Planned Unit Development ➔	(No Current District)

Part 2 Summary Comparison
Principal Changes in Permitted Uses

The following table strives to highlight differences between the current Zoning Ordinance in effect and the attached draft Article 3 (dated August 7, 2015) regarding the principal uses permitted in each district.

Column A identifies uses authorized in each district of draft Article 3 that are treated in a manner differently than under the current Ordinance in effect.

Column B identifies the manner in which the current Ordinance treats the specified use in the particular district.

Column C identifies the different manner in which the draft Article 3 treats the same specified use.

"SLU" = special land use

A Draft Ordinance Districts and Specified Uses	B How Current Ordinance Treats the Specified Use	C How Draft Article 3 Treats the Specified Use
All Districts		
Government Facilities	Varies with district.	Lincoln Twp. facilities permitted By Right. Other gov't facilities treated as SLU.
Large buildings	No special provisions	Any use of 10,000 sq. ft. in gross floor area is SLU (excluding agri. / residential uses).
Extraction operations	Permitted in RR and M-1 Districts only, as a SLU	Permitted as SLU in all districts (see "Special Notes" at end of this table).
State-licensed family home day care and foster care	Varies with district	Permitted By Right in Residential Districts (as required by law)
State-licensed group home day care and foster care	Varies with district	Permitted By SLU in Residential Districts (as permitted by law)
Utility substations	Varies with district	Permitted as SLU in all districts
RR Rural Residential (replaces current RR District)		
Clubs	Prohibited	Permitted as SLU
Cell towers	Prohibited	Permitted as SLU
Day care centers	Prohibited	Permitted as SLU
Veterinary Clinic	Prohibited	Permitted as SLU
Sales of trees, shrubs, etc.	Prohibited	Permitted as SLU
Schools, churches, libraries	Prohibited	Permitted as SLU
Intensive livestock farms and fur-bearing animal farms	Permitted as SLU	Permitted By Right (See "Special Notes" at end of Table)
Wireless communication facilities	Prohibited	Permitted by SLU (see "Special Notes" at end of table)
Clinics	Permitted as SLU	Prohibited
R-1 Low Density Residential (replaces current R-1)		
Conservation areas	Prohibited	Permitted by Right
Marinas	Prohibited	Permitted as SLU
Assisted living facilities	Prohibited	Permitted as SLU
Golf courses	Permitted by Right	Permitted as SLU
R-2 Medium Density Residential (replaces current R-2)		
Conservation areas	Prohibited	Permitted by Right
Golf courses	Prohibited	Permitted as SLU
Assisted living facilities	Prohibited	Permitted as SLU
Marinas	Prohibited	Permitted as SLU
Churches	Permitted by Right	Permitted as SLU

(Part 2 Table continued next page)

(Part 2 Table continued)

"SLU" = special land use

A Draft Ordinance Districts and Specified Uses	B How Current Ordinance Treats the Specified Use	C How Draft Article 3 Treats the Specified Use
R-MF Multiple Family Residential (replaces current R-3)		
Conservation areas	Prohibited	Permitted by Right
Golf courses	Prohibited	Permitted as SLU
Assisted living facilities	Prohibited	Permitted as SLU
Churches	Permitted by Right	Permitted as SLU
Single/Two-family dwellings	Permitted by Right	Prohibited
R-MHC Manufactured Housing Community (replaces current R-4)		
Conservation areas	Prohibited	Permitted by Right
Day care centers	Prohibited	Permitted as SLU
Mobile home sales	Prohibited	Permitted as SLU
Single/Two-family dwellings	Permitted by Right	Prohibited
C-1 Local Commercial (replaces current C-1)		
Health club	Prohibited	Permitted by Right
Medical clinics	Prohibited	Permitted by Right
Veterinarian clinics	Prohibited	Permitted by Right
Day care centers	Prohibited	Permitted as SLU
Funeral homes	Prohibited	Permitted as SLU
Hospital	Prohibited	Permitted as SLU
Indoor commercial recreation	Prohibited	Permitted as SLU
Single family dwellings	Permitted by right	Prohibited except above storefronts
C-2 General Commercial (replaces current C-2)		
Health club	Prohibited	Permitted by Right
Personal service establishments	Prohibited	Permitted by Right
Funeral homes	Prohibited	Permitted by Right
Offices	Prohibited	Permitted by Right
Laundromats/dry cleaning	Permitted as SLU	Permitted by Right
Veterinarian clinics	Prohibited	Permitted by Right
Outdoor recreation	Prohibited	Permitted as SLU
Indoor commercial recreation	Prohibited	Permitted as SLU
Hospital	Prohibited	Permitted as SLU
Day care center	Prohibited	Permitted as SLU
Wholesale businesses	Prohibited	Permitted as SLU
Clubs	Permitted by Right	Permitted as SLU
Marinas	Permitted by Right	Permitted as SLU
Taverns	Permitted by Right	Permitted as SLU
Golf course	Permitted by Right	Prohibited
Parking lots (as principal use)	Permitted by Right	Prohibited
Gas/oil processing	Permitted as SLU	Prohibited
Drive-thru restaurants	Permitted by Right	Permitted as SLU

(Part 2 Table continued next page)

(Part 2 Table continued)

"SLU" = special land use

A Draft Ordinance Districts and Specified Uses	B How Current Ordinance Treats the Specified Use	C How Draft Article 3 Treats the Specified Use
I-1 Light Industrial (replaces current M-1)		
Vehicle repair shops	Prohibited	Permitted by Right
Building materials sales yard	Prohibited	Permitted by Right
Offices and showrooms of plumbers/contractors	Prohibited	Permitted by Right
Wireless communication facilities	Prohibited	Permitted by SLU (see "Special Notes" at end of table)
I-2 Utility Industrial (replaces current M-2)		
Agriculture	Prohibited	Permitted by Right
Outdoor recreation	Prohibited	Permitted by Right
Conservation areas	Prohibited	Permitted by Right
Wireless communication facilities	Prohibited	Permitted by SLU

Special Notes to Part 2 Table:

Extraction Operations: Extraction operations are a permitted special land use in all districts in draft Article 3. The Michigan Zoning Enabling Act (MZEA) was amended by PA 113 of 2011 to provide that, in part, a zoning ordinance cannot prevent the extraction, by mining, of valuable natural resources from any property unless "very serious consequences" would result from such extraction. Natural resources shall be considered "valuable" if a person, by extracting the natural resources, can receive revenue and reasonably expect to operate at a profit. A person challenging the action on an extraction application has the initial burden of showing that there are valuable natural resources located on the relevant property, that there is a need for the natural resources by the person or in the market served by the person, and that no very serious consequences would result from the mining of the natural resources. More detailed provisions regarding this matter will be addressed in the third submittal of the initial draft ordinance (Article 18).

Wireless Communication Facilities: The Zoning Enabling Act (ZEA) was amended by Public Act 143 of 2012 to establish provisions regarding the local regulation of communication tower facilities. PA 143 provides, in summary, that wireless communications equipment must not be subject to special land use approval if the communications equipment is collocated on a legal existing support structure or in an existing equipment compound. Exceptions that enable such communications equipment to be subject to special land use approval are in the cases where the equipment increases the existing tower height more than 10% or 20' (the greater of the two), increases the width of the wireless communications support structure by more than the minimum necessary to permit collocation, or increases the area of the existing equipment compound to more than 2,500 square feet. Accordingly, Tables 3-2 and 3-3 of Article 3 address wireless communications facilities and more detailed provisions regarding this matter will be addressed in the third submittal of the initial draft ordinance (Article 18).

Intensive Livestock Operations: Article 3 does not classify any farming permitted in any district as a special land use, or otherwise prohibit intensive livestock operations in any district that permits farming. It is generally recognized that since the Michigan Commission of Agriculture and Rural Development adopted Generally Accepted Agricultural Management Practices for the siting of concentrated livestock operations, classifying such a use as a prohibited or "special land use" in a district that otherwise permits farming/agriculture will not likely withstand a legal challenge.

Part 3 Summary Comparison

Principal Changes in Site Development Standards

The principal changes in site development standards between the current Zoning Ordinance in effect and Table 3-4 of draft Article 3 (dated August 7, 2015) are summarized below.

Column A identifies the site development standards in those districts of draft Article 3 that are treated differently than under the current Ordinance in effect.

Column B identifies how the current Ordinance in effect treats the specified site development standard in the particular district.

Column C identifies how the draft Article 3 treats the same specified site development standard.

This table addresses only those districts for which substantive changes are included in Table 3-4 of draft Article 3.

A Draft Ordinance Districts and Specified Development Standard	B How Current Ordinance Treats This Specified Development Standard	C How Draft Article 3 (Table 3-4) Treats This Specified Development Standard
ALL DISTRICTS		
Minimum Lot Frontage	No Requirement	Frontage must be the same as the lot width. Footnote 2(a) of Table 3-4 permits limited exceptions.
Maximum Building Height Exemptions	No height limitations for farm buildings chimneys, spires, flagpoles, towers, etc., but the ZBA may specify a height in association with an SLU application (Sec. 1507)	Agricultural buildings may exceed height standard if set back additional 1' for each additional 1' in height. Additional exemptions provided as well to minimize variances, such as in the case of water towers and public utility structures. See Footnote 3 of Table 3-4.
Minimum setbacks from lakes	50'	50', except that where adjacent dwellings are set back a further distance, the setback shall be the average of adjacent lot setbacks. See Footnote 5 of Table 3-4.
Lot coverage (all impervious surfaces, not just buildings)	No limitations	Lot coverage percentages introduced.
Corner lot front yard setbacks	Setback must be met along both road frontages	Footnote 6(a) of Table 3-4 permits limited exceptions.
R-2 MEDIUM DENSITY RESIDENTIAL (replaces current R-2)		
Side Yard Setback	10'	Footnote 6 of Table 3-4 permits lesser setbacks, based on a percentage of the lot width, but not less than 5'.
Rear Yard Setback	25'	Footnote 7 of Table 3-4 permits lesser setbacks, based on a percentage of the lot depth, but not less than 20'.
R-MF MULTIPLE FAMILY (replaces current R-3)		
Minimum lot area/width	5 acres / 240'	1 acre / 200'

(Part 3 Table continued next page)

(Part 3 Table continued)

A Draft Ordinance Districts and Specified Development Standard	B How Current Ordinance Treats This Specified Development Standard	C How Draft Article 3 (Table 3-4) Treats This Specified Development Standard
C-1 LOCAL COMMERCIAL (replaces current C-1)		
Maximum Building Coverage	35%	50%
Side Yard Setback	5’	Footnote 6 of Table 3-4 increases the setback to 15’ in the case where the lot abuts a Conservation or Residential District
C-2 GENERAL COMMERCIAL (replaces current C-2)		
Minimum Lot Area / Width	30,000 sq. ft. / 100’	1 acre / 200’
Maximum Building Coverage	35%	50%
I-1 LIGHT INDUSTRIAL (replaces current M-1)		
Side Yard Setback	25’	Footnote 6 of Table 3-4 increases the setback to 100’ in the case where the lot abuts a Conservation or Residential District
Maximum Building Coverage	25%	50%
I-2 UTILITY INDUSTRIAL (replaces current M-2)		
Side Yard Setback	25’	Footnote 6 of Table 3-4 increases the setback to 100’ in the case where the lot abuts a Conservation or Residential District
Maximum Building Coverage	25%	50%

End of Part 3 Table

End of Summary Comparison

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Article 3
ZONING DISTRICTS, REGULATIONS, and MAP

Section 3.1 Establishment of Districts

For the purpose of this Ordinance, the Township is hereby divided into the following zoning districts, which shall be known by the following respective symbols and names, and shall have boundaries as delineated on the Official Zoning Map.

Conservation Districts
- RR Rural Residential

Residential Districts
- R-1 Low Density Residential District
- R-2 Medium Density Residential District
- R-MF Multiple Family Residential District
- R-MHC Manufactured Housing Community District

Commercial Districts
- C-1 Local Commercial District
- C-2 General Commercial District

Industrial Districts
- I-1 Light Industrial District
- I-2 Utility Industrial District

Other Districts
- PUD Planned Unit Development District

Section 3.2 Zoning District Map

A. The boundaries of the respective Districts enumerated in Section 3.1 are defined and established as depicted on the Official Zoning Map entitled LINCOLN TOWNSHIP ZONING MAP, which is an integral part of this Ordinance. This map, with all notations and explanatory matter thereon, shall be published as part of this Ordinance.

B. This Official Zoning Map shall be identified by the signature of the Township Supervisor, attested by the Township Clerk, and bearing the following: *This is to certify that this is the Official Zoning Map of the Lincoln Township Zoning Ordinance adopted on the ___ day of _____, 2016.* If, in accordance with the provisions of this Ordinance, changes are made in district boundaries or other matter portrayed on the Official Zoning Map, such changes shall be made on the Official Zoning Map.

C. The Official Zoning Map shall be located at the official office of the Township and shall be the final authority with regard to the current zoning status of all land in the Township, along with supporting minutes of Township Board meetings regarding zoning district changes, regardless of the existence of copies of the Official Zoning Map which may be made and from time to time.

Section 3.3 Purposes of Zoning Districts

See Table 3-1.

Section 3.4 Interpretation of District Boundaries

A. Where, due to the scale, lack of details, or illegibility of the Official Zoning Map, there is an uncertainty, contradiction, or conflict as to the intended location of any zoning district boundaries shown thereon, interpretation concerning the exact location of district boundary lines shall be determined, upon written application, to the Zoning Board of Appeals. The Zoning Board of Appeals shall apply the following standards in arriving at a decision on such matters:

1. Boundaries indicated as approximately following roads or highways shall be construed as following the center lines of said roads or highways.
2. Boundaries indicated as approximately following section lines, quarter section lines, quarter-quarter section lines, or lot lines shall be construed as following such lines.

3. Boundaries indicated as approximately following Township boundary lines shall be construed as following such boundary lines.
4. Boundaries indicated as approximately parallel to the center lines of roads shall be construed as being parallel thereto and at such distance there from as indicated on the Official Zoning Map. If no distance is given, such dimension shall be determined by the use of the scale shown on the Official Zoning Map.
5. Boundaries following the shoreline of a stream, lake, or other body of water shall be construed to follow such shorelines. In the event of change in the shoreline, the boundary shall be construed as moving with the actual shoreline. Boundaries indicated as approximately following the centerlines of streams, canals, or other water courses shall be construed to follow such centerlines.
6. Where the application of the aforesaid rules leaves a reasonable doubt as to the boundaries between two (2) districts, the regulations of the more restrictive district shall govern. The "more restrictive district" shall be the district that places greater restrictions on development based on such factors as the scope and intensity of authorized uses, setbacks, lot coverage, and related development standards.

Section 3.5 Permitted Uses in Zoning Districts

A. Compliance with Zoning Regulations: Except as may otherwise be provided in this Ordinance, every building and structure erected, every use of any lot, building, or structure established, every structural alteration or relocation of an existing building or structure, and every enlargement of, or addition to an existing use, building and structure, occurring after the effective date of this Ordinance, shall be subject to all regulations of this Ordinance that are applicable in the Zoning District in which such use, building, or structure shall be located.

1. Filled Lands: Whenever any fill is placed in any lake or stream, the land thus created shall automatically and without further governmental action thenceforth acquire and be subject to the same zoning regulations as are applicable for lands to which the same shall attach or be adjacent.

B. Uses Permitted in Each Zoning District: Tables 3-2 and 3-3 identify the principal land uses permitted in each of the districts enumerated in Section 3.1. No land use shall be established on a lot except in conformance with Tables 3-2 and 3-3 or as may be provided otherwise by this Ordinance. In order to ensure all possible benefits and protection for the zoning districts in this Ordinance, the Tables delineate whether a land use permitted in a particular District is a "Use Permitted by Right" or a "Special Land Use".

1. Uses Permitted by Right: Uses permitted by right are the primary uses and structures specified for which the District has been established, and are subject to plot plan or site plan approval except where provided otherwise.
2. Special Land Uses: Special land uses are uses and structures that have been generally accepted as reasonably compatible with the "uses permitted by right" in the District, but could present potential injurious effects upon such primary uses and structures within the District or are otherwise unique in character and therefore require special consideration in relation to the welfare of adjacent properties and to the Township as a whole. All such uses shall be subject to a public hearing and site plan approval. See Article 7, Procedures for Special Land Uses.

C. Accessory Uses: Unless otherwise specified in this Ordinance, uses that are clearly incidental to and customarily associated with the principal use of the property are permitted in all Districts and shall conform to all applicable standards of this Ordinance, including Section 20.9 (Accessory Uses, Buildings and Structures). Examples of such accessory uses include, but are not limited to, household gardening in association with a dwelling, the repair of vehicles in association with a vehicle dealership, and a parking lot in association with an office building. Except in the case of an approved home occupation, the manufacturing, sale, repair or servicing of items as a commercial activity or service shall not be construed as an accessory use to the principal residential use of a lot.

D. Prohibited Uses:

1. Use Not Listed is Prohibited: Any use of land not specifically permitted is prohibited, including any use of land not specifically identified in Tables 3-2 and 3-3. The Planning Commission may be petitioned to initiate an amendment to the Ordinance to authorize an otherwise prohibited use and standards that will apply for that use. If the Township Board adopts such an amendment, according to Article 9, then an application can be submitted for that use.
2. Non-Compliance with Local, County, State or Federal Law: No use shall be authorized or permitted that is not in compliance with all local, county, state and federal laws, rules and regulations.

Section 3.6 Site Development Requirements of Zoning Districts

A. All land uses shall comply with the site development requirements of the District in which it is located, as delineated in Table 3-4, in addition to all other applicable site development provisions of this Ordinance including, but not limited to:

1. Article 12, Off-Street Parking and Loading
2. Article 13, Landscaping and Screening
3. Article 14, Environmental Protection
4. Article 15, Access and Private Roads
5. Article 16, Signs
6. Article 18, Standards and Regulations for Specific Land Uses
7. Article 20, Supplemental Provisions

B. No part of a setback area, yard, or other open space required about or in connection with any use, building or structure, for the purpose of complying with this Ordinance, shall be included as part of a setback area, yard, or other open space similarly required for any other use, building or structure.

C. No setback area or lot existing at the time of adoption of this Ordinance shall be reduced in dimensions or area below the minimum requirements set forth herein. Yards or lots created after the effective date of this Ordinance shall meet at least the minimum requirements established herein, including lot area, width and frontage.

D. No portion of one lot shall be used in the creation of another lot unless each lot resulting from each such reduction, division, or sale, shall conform to all of the requirements established herein.

E. Wherever any provision of this Ordinance imposes more stringent requirements, regulations, restrictions or limitations than are imposed or required by the provisions of any other law or ordinance, the provisions of this Ordinance shall govern. Whenever the provisions of any other law or ordinance impose more stringent requirements than are imposed or required by this Ordinance, the provisions of such law or ordinance shall govern.

Section 3.7 Special District Provisions

A. Manufactured Housing Community District (R-MHC)

1. Pursuant to Section 11 of Public Act 96 of 1987, as amended, the Michigan Mobile Home Commission Act, a preliminary plan shall be submitted to the Township for review by the Planning Commission. The preliminary plan shall include the location, layout, general design, and general description of the project. The preliminary plan shall not include detailed construction plans. In preparing the preliminary plan and when reviewing the plan, the developer and Planning Commission shall generally follow the procedures and requirements in Article 6 of this Ordinance, except where said procedures and requirements are superseded by the requirements in P.A. 96 of 1987, as amended, or the Manufactured Housing Commission Rules. Pursuant to Section 11 of Public Act 96 of 1987, as amended, the Planning Commission shall take action of the preliminary plan within sixty (60) days after the Township receives the preliminary plan.
2. All manufactured housing communities shall be constructed and maintained in accordance with P.A. 96 of 1987, as amended, and the rules and regulations promulgated by the Manufactured Housing Commission pursuant to the authority vested in the Manufactured Housing Commission by such Act. The construction of a manufactured housing community shall not be initiated, nor shall a manufactured housing community be inhabited or operated until all necessary permits have been acquired from the Michigan Department of Labor and Economic Growth and all other agencies pursuant to the Mobile Home Commission Act.
3. The minimum lot area for a manufactured housing community project shall be ten (10) acres.

Section 3.8 Voting Place Exception

Nothing in this Ordinance shall be construed as to interfere with, establish limitations for, or otherwise regulate the use of a lot as a voting place in association with a public vote under the management or authority of a municipality.

Table 3-1
PURPOSES of ZONING DISTRICTS

Table 3-1 identifies the principal purposes of the Districts of this Ordinance.

DISTRICTS	PURPOSE
	ALL DISTRICTS
All Districts	1) Uses shall protect environmental resources including wetlands, woodlands and water resources. 2) Districts shall be located in coordination with the Lincoln Township Master Plan. 3) Uses shall minimize negative impacts on surrounding land uses. 4) Uses shall facilitate safe/efficient vehicular and non-motorized travel. 5) Uses shall be served by adequate facilities and services including sewage disposal, potable water, fire protection, and roads. 6) Districts shall discourage uses and development patterns that are contrary to the purpose of the district. 7) Additional and more specific purposes of each District are delineated below.
	RESOURCE CONSERVATION DISTRICTS
RR Rural Residential	1) Provide opportunities for low density residential lifestyles in a manner that supports the preservation of natural open spaces. 2) Provide opportunities for agriculture. 3) See also the "All Districts" purpose statement above.
	RESIDENTIAL DISTRICTS
R-1 Low Density Residential **R-2 Medium Density Residential** **R-MF Multiple Family** **R-MHC Manufactured Housing Community**	1) In the case of the R-1 District, provide opportunities or single-family residential development patterns and lifestyles of a comparatively low density and rural or suburban character. 2) In the case of the R-2 District, provide opportunities for single-family and two-family residential development patterns and lifestyles of a higher density that that of the R-1 District and of a more suburban and/or urban character. 3) In the case of the R-MF District, provide opportunities for apartment, townhouse and similar multiple family developments to meet the varied housing needs of current and future residents. 4) In the case of the R-MHC District, provide opportunities for manufactured housing communities to meet the varied housing needs of current and future residents. 5) Ensure a healthy residential environment including adequate opportunities for open space, light, air circulation, emergency access, and access to necessary public services. 6) Protect the stability and desirability of residential areas including the discouragement of uses that undermine such goals. 7) See also the "All Districts" purpose statement above.

Table 3-1 Continued on Next Page

Table 3-1 Continued (Purposes of Zoning Districts)

DISTRICTS	PURPOSE
	COMMERCIAL DISTRICTS
C-1 Local Commercial **C-2 General Commercial**	1) In the case of the C-1 District, to provide opportunities for commercial uses that address the local day-to-day retail, office and service needs of Township residents and visitors, within a central business district character including comparatively small establishments, continuous storefronts, pedestrian safety and amenities, and the absence of automobile-based uses and congestion-producing conditions. 2) In the case of the C-2 District, to provide opportunities for commercial uses that address the local day-to-day retail, office and service needs of Township residents and visitors, and those of a more regional population. 3) Accommodate and encourage the planned unified and integrated grouping of commercial uses on a single parcel and in coordination with surrounding properties, and the discouragement of traditional strip frontage development. 4) Facilitate safe, convenient, and efficient pedestrian and other non-motorized modes of travel within the development including linkages to neighboring commercial uses and neighborhoods. 5) Development is of a character that compliments the intended character of the Township through appropriate architectural design and building scale, building materials, setbacks, signage, landscaping, buffering, open spaces and lighting. 6) Safe and efficient vehicular and non-motorized circulation. 7) See also the “All Districts” purpose statement above.
	INDUSTRIAL DISTRICTS
I-1 Light Industrial **I-2 Utility Industrial**	1) In the case of the I-1 District, to provide for a variety of manufacturing and other industrial uses that can be generally characterized as being of low intensity, including comparatively small building sizes and the absence of objectionable external affects. 2) In the case of the I-2 District, to provide for gas and other utility-based industries. 3) Development is of a character that compliments the intended character of the Township through appropriate architectural design and building scale, building materials, setbacks, signage, landscaping, buffering, open spaces and lighting. 4) See also the “All Districts” purpose statement above.
	OTHER DISTRICTS
PUD Planned Unit Development	See Section 4.1, Planned Unit Development (PUD) District.

End of Table 3-1

Table 3-2
Permitted Principal Uses in Conservation and Residential Zoning Districts[1]

"BR" = Use Permitted By Right "S"= Use Permitted as Special Land Use[1] "–" = Prohibited Use

	PRINCIPAL USES[1]	ZONING DISTRICTS				
		RR	**R-1**	**R-2**	**R-MF**	**R-MHC**
	Uses of a Primarily Agricultural, Outdoor Recreation, or Natural Resource Based Character					
1	Agriculture.	**BR**	–	–	–	–
2	Areas set aside for the protection of wildlife and natural resources, wildlife management areas, nature preserves, and game refuges.	**BR**	**BR**	**BR**	**BR**	**BR**
3	Extraction operations.	S	S	S	S	S
4	Public and private facilities dedicated principally to outdoor non-motorized recreation including parks, boat liveries, campgrounds, summer camps, golf courses and country clubs.	S	S	S	–	–
5	Marinas	S	S	S	–	–
6	Shooting ranges and hunt clubs.	S	–	–	–	–
	Uses of a Primarily Residential Character					
1	Assisted living facilities, nursing homes and convalescent homes.	S	S	S	S	–
2	Manufactured housing communities.	–	–	–	–	**BR**
3	Multiple family dwellings.	–	–	–	**BR**	–
4	Single family dwellings.	**BR**	**BR**	**BR**	–	–
5	State licensed family home day care and family home foster care facilities.	**BR**	**BR**	**BR**	–	–
6	State licensed group home day care and group home foster care facilities.	S	S	S	–	–
7	Two family dwellings.	–	**BR**	**BR**	–	–
	Uses of a Primarily Commercial, Business or Industrial Character					
1	Agricultural service establishments including animal sales yards.	S	–	–	–	–
2	Bed and breakfast.	S	S	–	S	–
3	Boarding houses.	–	–	–	**BR**	–
4	Day care centers.	S	–	–	S	S
5	Gas and oil processing facilities.	S	–	–	–	–
6	Hospitals.	S	–	–	–	–
7	Kennels.	S	–	–	–	–
8	Mobile home sales, including as an accessory use to a manufactured housing community.	–	–	–	–	S
9	Radio and television communication towers and associated studios.	S	–	–	–	–
10	Resorts and conference centers.	S	–	–	–	–
11	Retail and wholesale sales of trees, shrubs, flowers and other plant material, and landscape supplies such as mulch, soil, landscape timbers, and garden ornaments.	S	–	–	–	–
12	Stable, Commercial.	S	–	–	–	–
13	Veterinarian clinics.	S	–	–	–	–
14	Wireless communication facilities[2]	S[2]	–	–	–	–

Table 3-2 Continued Next Page. See End of Table for Footnotes.

(Table 3-2 continued)

	PRINCIPAL USES[1]	ZONING DISTRICTS				
		RR	**R-1**	**R-2**	**R-MF**	**R-MHC**
	Other Uses Not Listed Above					
1	Airports and private landing strips.	S	–	–	–	–
2	Cemeteries, columbariums, mausoleums, and crematories.	S	–	–	–	–
3	Clubs.	S	–	–	S	–
4	Public facilities owned by Lincoln Township such as township offices, fire stations, police offices and jails, cemeteries, and parks.	**BR**	**BR**	**BR**	**BR**	**BR**
5	Public facilities owned by other than Lincoln Township, not otherwise addressed in this Table.	S	S	S	S	S
6	Schools, churches, libraries, museums and other institutions and semi-public facilities not otherwise addressed in this Table.	S	S	S	S	S
7	Utility substations, utility service yards, and similar locally-oriented utility service facilities.	S	S	S	S	S

Footnotes:

1. Irrespective of the particular labeling of a cell in this table, the following are classified as a Special Land Use:
   a. Any use that exceeds a single building of 10,000 sq. ft. in gross floor area or 20,000 sq. ft. in gross floor area among all buildings on the lot, excluding farm and residential buildings.
   b. Any use that serves alcohol for consumption on the lot on which the alcohol is sold.
2. See Article 18 regarding exceptions to the classification of wireless communication facilities as “special land uses” or “prohibited” uses.

End of Table 3-2

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Table 3-3

Permitted Principal Uses in Commercial and Industrial Zoning Districts[1]

See Footnotes at End of Table

"BR" = Use Permitted By Right "S"= Use Permitted as Special Land Use[1] "–" = Prohibited Use

	PRINCIPAL USES	ZONING DISTRICTS			
		C-1	C-2	I-1	I-2
	Uses of a Primarily Agricultural, Outdoor Recreation, or Natural Resource Based Character[1]				
1	Agriculture.	–	–	**BR**	**BR**
2	Areas set aside for the protection of wildlife and natural resources, wildlife management areas, nature preserves, and game refuges.	–	S	–	–
3	Extraction operations.	S	S	S	S
4	Marinas	–	S	–	–
5	Public and private facilities dedicated principally to outdoor non-motorized recreation, limited to parks, sports fields, boat liveries, and driving ranges.	–	–	–	S
	Uses of a Primarily Residential Character				
1	Dwellings when located on a second or third story above a business.	**BR**	**BR**	–	–
	Uses of a Primarily Commercial or Business Character[1]				
1	Agricultural service establishments.	–	S	**BR**	–
2	Any generally recognized retail business that supplies commodities on the premises within a completely enclosed building including, but not limited to, groceries, antiques, auto parts, packaged liquor, furniture, clothing, dry goods, notions, appliances, sporting goods, household pets, books, flowers, nursery stock, jewelry and hardware, but excluding sexually oriented businesses.	**BR**	**BR**	–	–
3	Bakeries.	**BR**	**BR**	–	–
4	Bed and breakfasts.	**BR**	–	–	–
5	Boarding houses.	–	S	–	–
6	Building material sales yard, including retail lumber yards and incidental millwork, and storage facilities for building materials and equipment.	–	S	**BR**	–
7	Day care centers.	S	S	–	–
8	Equipment rental, sales, service and repair ,associated with commercial, industrial or construction operations including vehicles.	–	S	**BR**	–
9	Funeral homes, including a dwelling occupied by the owner or manager.	S	**BR**	–	–
10	Gasoline service station.	–	S	–	–
11	Health clubs, fitness centers and dance studios.	**BR**	**BR**	–	–
12	Hospitals.	S	**BR**	–	–
13	Indoor commercial recreation such as theaters, bowling alleys, skating rinks, indoor shooting ranges, and similar uses.	S	**BR**	–	–
14	Kennels.	–	S	S	–
15	Mobile home sales accompanied by outdoor display of homes.	–	S	–	–
16	Medical clinics.	**BR**	**BR**	–	–
17	Mini-storage.	–	S	–	–
18	Motels and hotels, including conference centers.	–	**BR**	–	–
19	Landscape and garden supply sales including plant material, mulch, soil, timbers, boulders, gravel, stone, brick, and outdoor furniture and ornaments.	–	**BR**	–	–
20	Offices and showrooms of plumbers, electricians, decorators, and similar trades, and up to 25% of the floor area may be devoted to manufacturing including making, assembling, remodeling, repairing, altering, finishing or refinishing its products.	**BR[4]**	**BR[4]**	–	–
21	Offices and showrooms of plumbers, electricians, decorators, and similar trades, and which include more than 25% of the floor area devoted to manufacturing including making, assembling, remodeling, repairing, altering, finishing or refinishing its products.	S[4]	S[4]	**BR**	–
22	Offices which perform services on the premises including but not limited to financial, insurance, and real estate offices, artist offices and galleries.	BR	BR	-	–

Table 3-3 Continued Next Page. See End of Table for Footnotes.

Table 3-3 (Continued)

Permitted Principal Uses in Commercial and Industrial Zoning Districts[1]

"BR" = Use Permitted By Right "S"= Use Permitted as Special Land Use[1] "–" = Prohibited Use

	PRINCIPAL USES	ZONING DISTRICTS			
		C-1	C-2	I-1	I-2
	Uses of a Primarily Commercial or Business Character[1]				
23	Offices of an executive, administrative, clerical and similar character, in which the principal function of the office does not entail on-site visits by customers.	**BR**	**BR**	–	–
24	Offices for accountants, doctors, lawyers, insurers, financial and other consultants, architects, and similar professional office uses.	**BR**	**BR**	–	–
25	Personal service establishments that perform services on the premises within a completely enclosed building, such as shoe repair, barber and beauty shops, tanning salons, photographic studios, appliance repair, and dry cleaners.	**BR**	**BR**	–	–
26	Publishing, printing, photocopying and other document reproduction services, including newspaper offices and associated printing. .	**BR**	**BR**	–	–
27	Sexually oriented businesses.	–	–	S	–
28	Recreation of an outdoor commercial character such as putt-putt golf, batting cages, and go-cart racing, but excluding shooting ranges and hunt clubs.	–	S	–	–
29	Recreation of an indoor commercial character such as theaters, concert halls, bowling alleys, and arcades, but excluding shooting ranges and hunt clubs.	S	S	–	–
30	Restaurants, excluding drive-in and drive-through restaurants.	**BR[2]**	**BR[2]**	–	–
31	Restaurants consisting of drive-in or drive-through restaurants.	–	S	–	–
32	Sexually oriented businesses.	–	–	S	–
33	Taverns.	–	S	–	–
34	Vehicle / car wash facility.	–	S	–	–
35	Vehicle repair shop.	–	S	**BR**	–
36	Vehicle sales including new and used cars, boats, farm and construction machinery, and other vehicles and items intended for tow, and the service and repair of such items.	–	S	–	–
37	Veterinarian clinics.	**BR**	**BR**	–	–
38	Wholesale businesses.	–	S	–	–
39	Wireless communication towers.	–[3]	S[3]	S[3]	S[3]
	Uses of a Primarily Industrial Character[1]				
1	Assembly of electrical appliances, electronic instruments and devices, including the manufacture of small parts such as computer parts.	–	–	**BR**	–
2	Concrete and asphalt plants.	–	–	S	–
3	Foundries	–	–	S	–
4	Gas and oil processing facilities.	–	–	S	**BR**
5	Junkyards and salvage yards including auto salvage.	–	–	S	–
6	Manufacturing, compounding, assembling or treatment of items from materials processed, manufactured or created at another location and transported to the lot in this District for assembly into new products.	–	–	**BR**	–
7	Manufacturing, compounding, assembling or treatment of articles or merchandise not otherwise included in (6) above.	–	–	S	–
8	Manufacturing, processing or sales of fertilizers, feeds and other farm supplies.	–	–	S	–
9	Monument and art stone production and sales.	–	–	S	–
10	Plastic molding and extrusion.	–	–	S	–
11	Printing and publishing.	–	S	**BR**	–
12	Power plants and storage and transfer facilities for natural gas.	–	–	–	**BR**
13	Production, processing or testing utilized in product prototyping.	–	–	**BR**	–
14	Recycling facilities.	–	–	**BR**	**BR**
15	Sawmills.	–	–	S	–
16	Tool and die shops.	–	–	**BR**	–
17	Warehousing, storage and transfer establishments, including truck terminals.	–	–	**BR**	–

Table 3-3 Continued Next Page. See End of Table for Footnotes.

Table 3-3 (Continued)

Permitted Principal Uses in Commercial and Industrial Zoning Districts[1]

"BR" = Use Permitted By Right "S"= Use Permitted as Special Land Use[1] "–" = Prohibited Use

	PRINCIPAL USES	ZONING DISTRICTS			
		C-1	C-2	I-1	I-2
	Other Uses Not Listed Above[1]				
1	Clubs.	S	**BR**	–	–
2	Parking lot (as principal use)	–	S	–	–
3	Public facilities owned by Lincoln Township such as township offices, fire stations, cemeteries, and parks.	**BR**	**BR**	**BR**	**BR**
4	Public facilities not owned by Lincoln Township and not otherwise addressed in Table.	S	S	S	S
5	Schools, churches, libraries, museums and other institutions and semi-public facilities not otherwise addressed in this Table above.	S	S	–	–
6	Utility substations, utility service yards, and similar uses.	S	S	S	**BR**

Footnotes for Table 3-3

1. Irrespective of the particular labeling of a cell in this table, the following are classified as a Special Land Use:
   a. Any use in a B-1 District that exceeds a single building gross floor area of 5,000 sq. ft. or 10,000 sq. ft. in area among all buildings on the parcel; any use in a B-2 District that exceeds a single building gross floor area of 15,000 sq. ft. or 25,000 sq. ft. in area among all buildings on the parcel; and any use in a I-1 District that exceeds a single building gross floor area of 40,000 sq. ft. or 60,000 sq. ft. in area among all buildings. This Footnote 1(a) shall not apply to farm and residential buildings.
   b. Any use that includes more than one thousand (1,000) square feet in outdoor storage area.
   c. That portion of a use that is comprised of a drive-through facility, such as a drive-through banking facility with or without administrative offices, or drive-through facilities in association with a restaurant.
2. Outdoor areas associated with any restaurant that is used or intended to be used for eating, drinking, sporting activities and/or other gathering of persons, when such outdoor areas exceed 750 square feet in area or otherwise permits more than thirty (30) persons to occupy such area, are classified as a special land use.
3. See Sec. ___ regarding exceptions to the classification of wireless communication towers as "special land uses" or "prohibited" uses.
4. In the case of showrooms of plumbers, electricians, decorators, and similar trades, that include floor area devoted to manufacturing including making, assembling, remodeling, repairing, altering, finishing or refinishing its products, first floor areas within 30' of the building's front façade shall be devoted to display, sales, and/or office purposes only

End of Table 3-3

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Table 3-4[1]
SITE DEVELOPMENT REQUIREMENTS[1]

All principal land uses and principal buildings shall comply with the site development requirements of Table 3-4 unless otherwise specified by this Ordinance. See Section 20.9 regarding standards for accessory buildings and structures.

Zoning District	Minimum Lot Area	Minimum Lot Width and Frontage	Maximum Building Height feet / stories	Maximum Building Coverage (BC) / Maximum Lot Coverage (LC)	Minimum Yard Setback Front	Each Side	Rear
RR Rural Residential	10 acres	330 ft.[2]	40 ft.[3] / 3 stories	BC: 25% LC: 35%	90 ft.[5]	50 ft.[6]	50 ft.
R-1 Low Density Residential	1 acre	165 ft.[2]	35 ft.[3] / 2.5 stories	BC: 25% LC: 30%	50 ft.[5]	10 ft.[6]	25 ft.
R-2 Medium Density Residential	15,000 sq. ft.	100 ft.[2]	35 ft.[3] / 2.5 stories	BC: 25% LC: 30%	50 ft.[5]	10 ft.[6]	25 ft.[7]
R-MF Multiple Family	1 acre	200 ft.[2]	40 ft.[3] / 3 stories	BC: 30% LC: 50%	50 ft.[5]	10 ft.[6]	50 ft.
R-MHC Manufactured Home Community	See Section 3.07						
C-1 Local Commercial	30,000 sq. ft.	100 ft.[2]	40 ft.[3] / 3 stories	BC: 50% LC: 80%	10 ft.[5]	5 ft.[6]	25 ft.
C-2 General Commercial	1 acre	200 ft.[2]	40 ft.[3] / 3 stories	BC: 50% LC: 70%	50 ft.[5]	25 ft.[6]	25 ft.
I-1 Light Industrial	2 acres	330 ft.[2]	40 ft.[3] / 3 stories	BC: 50% LC: 70%	50 ft.[5]	25 ft.[6]	25 ft.
I-2 Utility Industrial	20 acres	660 ft.[2]	40 ft.[3] / 3 stories	BC: 25% LC: 30%	50 ft.[5]	50 ft.[6]	50 ft.

See following pages for Table 3-4 Footnotes.

Footnotes for Table 3-4
Site Development Requirements

1. **Other Standards and Regulations:** All uses shall comply with the site development requirements in Table 3-4, unless specified otherwise by this Ordinance. See also Article 12 - Off-Street Parking and Loading, Article 13 - Landscaping and Screening, Article 14 - Environmental Protection, Article 15 - Access and Private Roads, Article 16 - Signs, Article 18 - Standards and Regulations for Specific Land Uses, and Article 20 - Supplemental Provisions (including provisions addressing accessory structures), and other Articles as applicable.

2. **Configuration of Lots:** All lots shall conform to the following configuration requirements:
   a. Depth-to-Width Ratio: The depth of a lot shall not exceed four (4) times its width. See Article 21 regarding definitions for "lot width" and "lot depth."
   b. Lesser Frontage and Width Exceptions: Lesser frontage and width standards than those of Table 3-4 may be approved where the front lot line abuts a curvilinear road segment, such as a cul-de-sac, where without such reduction, such lots would be unnecessarily excessive in overall width or area, or otherwise result in irregular or impractical configurations. However, such frontage and width reductions shall not exceed fifty percent (50%), and the minimum front yard setback shall be increased to the line at which there is compliance with the lot width standard of Table 3-4.

3. **Height Exceptions:**
   a. Agricultural Buildings: Agricultural buildings and structures are exempt from the height limitations of Table 3-4 provided the building or structure is setback from all lot lines an additional one (1) foot for each one (1) foot that the building or structure exceeds the height limitation of Table 3-4, provided the exemption shall conform to all rules and regulations of the Federal Communications Commission and Civil Aeronautics Administration.
   b. Other: The following height exemptions apply except where otherwise regulated by this Ordinance, provided no portion of the building or structure exceeding the district height limitation according to Table 3-4 may be used for human occupancy, there shall be compliance with all rules and regulations of the Federal Communications Commission and Civil Aeronautics Administration, and the site plan approving body finds the exemption shall not undermine the character, use and enjoyment of nearby properties:
      1) Roof-mounted features that are purely ornamental in purpose such as church spires, belfries, cupolas, domes, ornamental towers, and similar features, provided such features do not exceed an area greater than five percent (5%) of the area of the structure's first floor.
      2) Those necessary appurtenances to mechanical or structural functions, such as chimneys and smokestacks, water tanks, elevator and stairwell structures, and ventilators, but not to exceed sixty (60) feet in height above the ground surface below.
      3) Public utility structures.

4. **Maximum Lot Coverage:** In addition to the maximum lot coverage standard of Table 3-4, a minimum of thirty percent (30%) of a front yard shall be maintained as lawn, planting beds, or other landscaped areas comprised of live plant material.

5. **Front Yard Setback Measurements and Special Water Setbacks:**
   a. Measurement: Unless specified otherwise in this Ordinance, including (b) below, front yard setbacks shall be measured from the road right-of-way line constituting the front lot line.
   b. Waterfront Lot: In the case of a waterfront lot, the front yard shall be that yard adjacent to the water body and the front yard setback shall be measured from the ordinary high water mark or, where a shoreline wall is present, from the face of the shoreline wall. See Article 2 for definitions of "yard, front" and "ordinary high water mark".
   c. Ordinary High Water Mark Setback: In no case shall a structure be located closer than fifty (50) feet from the ordinary high water mark except that where there exists one (1) or more dwellings on waterfront lots located on one (1) or both sides of such lot, and where such dwellings are within one hundred (100) feet of such lot, the required setback shall be the average setback of such existing dwellings measured from the ordinary high water mark. However, in no case shall such setback be less than fifty (50) feet. See Article 2 for definitions of "yard, front" and "ordinary high water mark".

6. Side Yard Setbacks

a. All Corner Lots: For a corner lot in any district, the minimum required front yard setback shall apply to both yards abutting a road right-of-way/easement, except that the minimum setback for the designated side yard may be reduced the minimum amount necessary to ensure a twenty (20) foot buildable lot width. However, in no case shall such setback be less than twenty (20) feet. "Buildable lot width" shall be defined as the width of the lot measured at the required minimum front yard setback line less both required side yard setback dimensions.

b. R-2 District: Side yard setbacks for principal buildings in the R-2 District shall be 10' except that in the case of a lot recorded with the County Register of Deeds prior to the effective date of this Ordinance, that does not comply with the minimum required 100' lot width, each required side yard setback shall be equal to ten percent (10%) of the lot width, but in no case shall each side yard setback be less than five (5) feet. Side yard setbacks for corner lots shall comply with Footnote 6(a) above.

c. C-1 District: The required five (5) foot side yard setback shall not apply in the case of shared-wall construction with an adjacent building on an adjacent lot. The required five (5) foot side yard setback shall be increased to fifteen (15) feet where the side lot line abuts a Conservation or Residential District.

d. I-1 District: The required twenty-five (25) foot side yard setback shall not apply in the case of shared-wall construction with an adjacent building on an adjacent lot. The required twenty-five (25) foot side yard setback shall be increased to one-hundred (100) feet where the side lot line abuts a Conservation or Residential District.

7. Rear Yard Setbacks

a. R-2 District: Rear yard setbacks for principal buildings in the R-2 District shall be 25' except that in the case of a lot recorded with the County Register of Deeds prior to the effective date of this Ordinance, that has a lot depth of less than 100', the minimum required rear yard setback shall be equal to 25% of the lot depth, but in no case shall a minimum required rear yard setback be less than 20'.

End of Article 3

Article 4
PLANNED UNIT DEVELOPMENT (PUD) DISTRICT

Section 4.1 Purpose

The provisions of this Article provide enabling authority and standards for the submission, review and approval of applications for planned unit developments (PUDs), pursuant to the Michigan Zoning Enabling Act. It is the intent of the Article to authorize the use of PUD regulations to permit flexibility in the regulation of land development to encourage beneficial innovation in land use and variety in design, layout, and type of structures constructed; achieve economy and efficiency in the use of land, natural resources, energy, and the provision of public services and utilities; encourage useful open space; and provide better housing, employment, and shopping opportunities. The provisions of this Article are not intended as a device for ignoring this Ordinance or the planning upon which it is based. To this end, the provisions of this Article are intended to result in land use development substantially consistent with the planned development pattern for the Township according to the Lincoln Township Master Plan, with modifications and departures from Ordinance requirements made in accordance with standards provided in this Article to insure appropriate, fair, and consistent decision making.

Section 4.2 PUD Is a Separate District

A PUD is permitted as a separate zoning district and only when determined to be in compliance with the provisions of this Article. The approval of a PUD shall require an amendment of the Official Zoning Map constituting a part of this Ordinance, so as to designate the property "PUD," and the PUD shall be subject to the approved PUD application including the approved PUD site plan.

Section 4.3 Minimum Eligibility Criteria

A. The following minimum eligibility criteria shall be met in order for PUD approval:

1. Recognizable and Substantial Benefit: The PUD shall result in a recognizable and substantial benefit to the ultimate users of the project and to the community. Such benefit must otherwise be unfeasible or unlikely under the regulations of other Districts.
2. Availability and Capacity of Public Services: The proposed type and intensity of use shall not result in an unreasonable burden on the availability and use of existing public services, facilities, and utilities.
3. Compatibility with the Master Plan: The proposed development shall be in accordance with the goals and policies of the Lincoln Township Master Plan.
4. Compatibility with the PUD Intent: The proposed development shall be consistent with the intent and spirit of Section 4.1.
5. Economic Impact: The proposed development shall not impede the continued use or development of surrounding properties for uses permitted on such properties.
6. Unified Control of Property: The proposed development shall be under single ownership or control such that there is a single person or entity having responsibility for completing the project in conformity with this Ordinance and the specifications of the PUD approval.

Section 4.4 Use and Design Standards

A. Permitted Uses and Mix of Uses:

1. Scope of Uses: Any land use authorized in this Ordinance is permitted in a PUD as a principal or accessory use provided that public health, safety, and welfare are not impaired and the essential character of the proposed PUD meets the general intent of the Lincoln Township Master Plan.
2. Non-Residential Uses in a Residential Development: Where the Master Plan provides for primarily residential development patterns, commercial and other nonresidential uses may be permitted as part of a PUD that also contains a residential component, provided that the residential component will be predominant.
   a. The determination of the predominance of the residential component shall take into account the extent to which the non-residential use serves residents in the PUD compared to others who will travel to the site, the amount of traffic generated by the non-residential use compared to the residential component, the operational hours of the non-residential use, the proportional land area allocated to the non-residential use, and the building floor area allocated to the non-residential use.

B. General Site Development Standards and Waivers: The site development standards for all proposed portions of a PUD shall conform to this Ordinance, including access and road standards, landscaping and screening, off-street parking and loading, and signage, except that the Planning Commission may waive such standards where such modifications will result in a more beneficial development than would be possible without the modifications.

1. Residential Standards: Unless a waiver is granted, standards pertaining to lot area and dimensions, density, lot coverage, and setbacks for residential portions of a PUD shall comply with the minimum standards of Table 3-4 of Article 3 according to the Resource Conservation or Residential District that most closely corresponds to the character of such portion of the PUD.
2. Commercial / Industrial Standards: Unless a waiver is granted, standards pertaining to lot area and dimensions, lot coverage, and setbacks for commercial and industrial portions of a PUD shall comply with the minimum standards of Table 3-4 of Article 3 according to the commercial and/or industrial district that most closely corresponds to the character of such portion of the PUD. Unless a waiver is granted, each individual non-residential use shall comply with applicable standards contained in Article 18, Standards and Regulations for Specific Land Uses.
3. Waiver Findings: The waiving of development standards may be authorized only upon a finding by the Planning Commission that there are adequate features or planning mechanisms designed into the project to achieve the objectives intended to be accomplished with respect to each of the standards from which a departure is sought.

Section 4.5 Approval Standards

A. Each application for a PUD shall conform to all applicable provisions of this Ordinance unless specific waivers have been granted by the Planning Commission, and the following:

1. Site Plan Approval Standards, Section 6.4.
2. General Approval Standards for Special Land Uses, Section 7.6.

Section 4.6 Procedure for Review and Approval

A. Optional Pre-application Conference: Prior to the submission of a preliminary site plan for PUD approval, the applicant may request a meeting with the Chairperson of the Planning Commission and the Township Supervisor, together with such consultants and local officials and staff as either the Township or the applicant deem appropriate. The purpose of the meeting shall be to inform township officials of the general theme for the proposed development and to provide the potential applicant with information regarding land development policies, procedures, standards and requirements of the Township pertaining to the development being contemplated by the applicant. Statements made in the course of a pre-application conference shall not be legally binding commitments. At the pre-application conference(s), the applicant may present a general sketch plan of the proposed PUD that provides an overview of the proposed project.

B. Preliminary Site Plan: Application, Public Hearing, and Action:

1. The applicant shall submit to the Zoning Administrator twenty (20) copies of a preliminary site plan and an application form supplied by the Zoning Administrator. The Zoning Administrator shall forward copies to the Planning Commission. The preliminary site plan shall comply with the requirements of Section 6.3 and include a detailed text description of the proposed development and all Ordinance standards for which the applicant is seeking a waiver.
2. The Planning Commission shall review the preliminary site plan and shall be entitled to make reasonable inquiries of and receive answers from the applicant. Following review of the preliminary site plan submittal, the Planning Commission shall act on the preliminary site plan as if it were an application for rezoning, and in doing so, shall follow the provisions of Article 6.
3. Following the public hearing provided under Article 9 and any fact finding and additional studies, the Planning Commission shall prepare written findings regarding the PUD application and the preliminary site plan's conformance with the applicable requirements of this Article and Ordinance, including the approval standards of Sections 6.4 and 7.6. The Planning Commission shall recommend to the Township Board to approve, deny, or approve with conditions the preliminary site plan. The Planning Commission shall prepare and transmit a report to the Township Board stating its conclusions and recommendation, the basis for its decision, and any recommended conditions relating to an affirmative decision. The report shall document the extent to which the Planning Commission supports the waivers being requested by the applicant and any concerns regarding the same.

4. The Township Board shall take final action to approve, deny, or approve with conditions the preliminary PUD application and site plan. In reviewing the preliminary PUD application and site plan, the Township Board shall consider the applicable requirements of this Article and Ordinance including Sections 6.4 and 7.6. The Township Board shall prepare and transmit a report to the applicant stating its conclusions and decision, the basis for its decision, and any conditions relating to an affirmative decision. The effect of Township Board approval of the preliminary PUD application and site plan shall be:
   a. to authorize the fundamental PUD character and layout embodied in the preliminary site plan, including any conditions applied to the approval, prior to the preparation of a final site plan.
   b. to authorize a change on the Zoning Map to classify the subject property as "PUD".

C. Final Plan and Permit Issuance

1. Within eighteen (18) months following receipt of preliminary approval, the applicant shall submit to the Zoning Administrator twenty (20) copies of a final PUD site plan, or phase one of a final site plan, in conformance with Section 6.3 and including a detailed text description of the proposed development and all Ordinance standards subject to a proposed waiver. If the final plan has not been submitted within such period, the preliminary plan approval shall become null and void unless the Township Board extends the time for submission of the final plan upon a showing by the applicant that no material change of circumstances has occurred having bearing on the original action of the Township Board, found upon inspection by the Township Board to be valid.
2. The Zoning Administrator shall record the date of the receipt of the final site plan and transmit copies to the Planning Commission and other agencies or individuals selected to review such plans including but not necessarily limited to Township departments and staff, consultants, County Drain Commissioner, and County Road Commission.
3. The Planning Commission shall review the final plan and shall be entitled to make reasonable inquiries of and receive answers from the applicant. The Planning Commission shall prepare and transmit a report to the Township Board stating its conclusions and recommendation, the basis for its recommendation, and any conditions relating to an affirmative decision. The Planning Commission shall recommend to the Township Board to approve, deny, or approve with conditions the final plan. The Township Board shall take final action to approve, deny, or approve with conditions the final PUD site plan. In reviewing the final plan, the Township Board shall consider the applicable requirements of this Article and Ordinance, including Sections 6.4 and 7.6. The Township Board shall prepare and transmit a report to the applicant stating its conclusions and decision, the basis for its decision, and any conditions relating to an affirmative decision.
4. If and when the final site plan is approved, all improvements and use of the property shall be in conformity with the final site plan and any conditions imposed. The applicant shall record an affidavit with the Register of Deeds containing the legal description of the entire project, specifying the date of approval, and declaring that all future improvements shall be carried out in accordance with the approved PUD unless a site plan revision is approved by the Township Board upon request or approval of the applicant or applicant's transferee and/or assignees. Upon receipt of the recorded documents, the Zoning Administrator shall issue a permit for that portion of the PUD project receiving final site plan approval.
   a. An approved final site plan shall become null and void three (3) years from the date of its approval unless the project for which site plan approval has been granted has been completed within such time period. The Township Board may extend such approval time for multiple periods of no greater than one (1) year per period. No extension shall be granted unless the Township Board finds that surrounding conditions and land uses, and the most current standards of this Ordinance, continue to support the adequacy of the site plan. Where new standards or regulations have been made part of this Ordinance since the date of the site plan approval, the Township Board may waive compliance with such new standards and regulations for the remaining portion of the project to be completed upon a finding that conformance to the new standards would unreasonably burden the completion of the project and continued compliance with the standards on which the site plan was originally approved shall not undermine the public health, safety and welfare including the project's impact on surrounding land uses.

Section 4.7 Phasing of Mixed Uses

A. Residential PUDs: In developments that are to be predominantly residential in character but include nonresidential components, the Township Board may require a phasing plan to ensure that a specified number or percentage of the proposed residential units are constructed prior to or concurrently with nonresidential components, and such phasing plan may include other requirements to ensure appropriate phasing.

B. Non-Residential PUDs: In developments that are not to be predominantly residential in character but include a mix of uses, the Township Board may require a phasing plan to ensure that certain uses or components of the PUD be constructed prior to or concurrently with other uses or components to ensure the intended dominant character of the PUD.

End of Article 4

Article 5

Reserved for Future Use

End of Article 5

Article 20
SUPPLEMENTAL PROVISIONS

Section 20.1 Purpose

The purpose of this Article is to recognize that there are certain conditions concerning land uses that warrant specific exceptions, regulations, or standards in addition to the regulations contained elsewhere in this Ordinance, and to establish such exceptions, regulations, and standards. The following supplemental provisions apply to all uses and all zoning districts unless otherwise indicated.

Section 20.2 Conditional Approvals

A. Conditions on Discretionary Decisions: The Zoning Administrator, Planning Commission, Zoning Board of Appeals, and Township Board may attach conditions to the approval of a site plan, special land use, variance or other discretionary approval. Such conditions shall be based upon standards in this Ordinance and may be imposed to:

1. Insure that public services and facilities affected by a proposed land use or activity will be capable of accommodating increased service and facility loads caused by the land use or activity.
2. Protect the natural environment and conserve natural resources and energy.
3. Insure compatibility with adjacent uses of land.
4. Promote the use of land in a socially and economically desirable manner.

B. Requirements for Valid Conditions: Conditions imposed shall meet all of the following requirements:

1. Be designed to protect natural resources, the health, safety, and welfare and the social and economic well-being of those who will use the land use or activity under consideration, residents and landowners immediately adjacent to the proposed land use or activity, and the community as a whole.
2. Be related to the valid exercise of the police power, and purposes which are affected by the proposed use or activity.
3. Be necessary to meet the intent and purpose of the Zoning Ordinance, be related to the standards established in the Ordinance for the land use or activity under consideration, and be necessary to insure compliance with those standards.

C. Record of Conditions and Changes: Any conditions imposed shall be recorded in the record of the approval action. These conditions shall not be changed except upon the mutual consent of the approving authority and the property owner.

D. Performance Guarantees: Performance guarantees may be required to ensure compliance with conditions on discretionary decisions pursuant to the requirements of Section 3.6.

Section 20.3 Moving Buildings

No existing building or structure within or outside of the Township shall be relocated on any lot in the Township unless the building or structure meets all provisions of this Ordinance and the Michigan Construction Code and a zoning permit has been issued for such relocation.

Section 20.4 Essential Services

Essential services as defined in this Ordinance shall be permitted as authorized and regulated by law and other ordinances of the Township, it being the intention hereof to exempt such essential services from the application of this Ordinance. This exception shall not apply to administrative buildings, communication towers, public utility storage yards, gas regulator stations, electrical substations, water towers, water and sewage treatment plants, and similar above-ground structures and uses associated with such essential services.

Section 20.5 One Dwelling Unit / Principal Use per Lot

A. Dwellings: No more than one (1) dwelling unit shall be established on a lot except as otherwise authorized by this Ordinance, such as in the case where Table 3-2 or 3-3 of Article 3 authorizes two-family or multiple family dwellings, or where a temporary dwelling may be authorized (Section 20.7, Temporary Dwellings).

B. Principal Uses: No more than one (1) principal use shall be established on a lot except as may be authorized in a Commercial or Industrial District and according to an approved site plan pursuant to Article 6.

Section 20.6 Single Family Dwelling Standards

A. All single family dwellings and modifications thereto shall comply with the requirements of this Ordinance including the following standards, provided that the foregoing standards shall not apply to temporary dwellings, or mobile homes located in a licensed manufactured housing community, except to the extent required by State and Federal law.

1. The dwelling shall have a minimum total floor area of seven-hundred twenty (720) square feet, excluding floor area devoted to a basement, garage, utility rooms, breezeways, and open or screened-in outdoor spaces commonly referred to as a deck or porch or any other similar spaces that are not fully enclosed by walls and a roof.
2. The dwelling shall have a minimum straight line dimension of fourteen (14) feet across each of its front, side and rear elevations, and shall a minimum ceiling height of seven and one-half (7.5) feet.
3. The dwelling and all modifications thereto shall comply in all respects with the Michigan Construction Code and any fire codes of the Township. Where a dwelling is required by law to comply with federal or state standards or regulations for construction and where such standards or regulations for construction are different than those imposed by such codes, then and in that event such federal or state standard or regulation shall apply.
4. The dwelling shall be firmly attached to a permanent foundation constructed on the site in accordance with the building code and shall have a wall of the same perimeter dimensions of the dwelling, except in the case of cantilever architecture, and constructed of such materials and type as required by the building code for such dwelling. No dwelling shall have exposed wheels, towing mechanism, undercarriage, or chassis.
    a. A mobile home shall be installed pursuant to the manufacturer's setup instructions and shall be secured to the premises by an anchoring system or device, and shall be set on a concrete footing with a masonry wall extending from the perimeter wall of the dwelling to ground, or on a concrete footing with fireproof supports and shall have a continuous skirt extending from perimeter to ground, made of commercial quality or equivalent, and comply with the rules and regulations of the Michigan Mobile Home Commission, the Public Health Department, and HUD Regulations 24 CFR 3280, being the "Mobile Home Construction and Safety Standards".
5. A mobile home shall meet the Manufactured Home Construction and Safety Standards Act of 1974 (as amended) or be certified by HUD to be approved for occupancy and to be placed on a new site. For mobile homes built prior to June 15, 1976, a label certifying compliance to the Standards for Mobile Homes, NFPA 501, ANSI 119.1, in effect at the time of manufacture, is required, as identified in the Michigan Residential Code, Appendix E definitions.
6. The dwelling shall have not less than two (2) exterior doors, with one (1) of the doors being located along a different side of the dwelling than the other door. The dwelling shall have steps connected to exterior door areas, or to porches connected to exterior door areas, where the difference in elevation exceeds twelve (12) inches.
7. Any additions or modifications to a dwelling shall be constructed of similar or better quality workmanship as the original structure, including permanent attachment to the principal structure and foundation.
8. The dwelling shall contain storage area equal to ten percent (10%) of the square footage of the dwelling or one-hundred fifty (150) square feet, whichever shall be less, and shall be located in a basement part of the dwelling, in an attic area, in closet areas, or in a separate structure constructed of similar or better quality workmanship as the dwelling. Such required storage area shall be in addition to any interior storage area used for the parking of vehicles.
9. The dwelling shall be connected to a public sewer and water supply or to such private facilities approved by the County Health Department.
10. The dwelling shall have a roof overhang of not less than six (6) inches along all sides or shall have recessed windows and roof drainage systems concentrating roof drainage at collection points.
11. The dwelling's wall and roof areas shall have a finished surface that is non-reflective and non-glare-producing. The finished surfaces shall be of weather-protecting materials such as brick, wood, vinyl, concrete and similar protective materials, commonly used by the housing industry and designed as an outdoor exterior surface including resistance to deterioration and damage from weather conditions. Such surfacing shall be maintained to ensure an effective protective covering for the more interior parts of the dwelling's walls and roof and shall be promptly repaired upon deterioration or other damage.

Section 20.7 Temporary Dwellings

A. Authorization/Application: Temporary dwellings are prohibited except as approved by the Zoning Administrator according to this Section and as may be permitted according to Section 20.8. Application for and authorization of a temporary dwelling under this Section shall require the submittal of a zoning permit application available from the Zoning Administrator including a plot plan prepared according to Section 2.4(B). A temporary dwelling may be authorized under this Section for the following purposes only:

1. Emergency Housing**:** A temporary dwelling may be authorized by the Zoning Administrator to allow a recreational vehicle or mobile home to be placed on the lot while the existing permanent dwelling on the same lot is under repair due to destruction by fire, collapse, explosion, Acts of God, or acts of a public enemy, to the extent that it is no longer safe for human occupancy, and for which repairs a zoning permit and building permit have been issued. Application for and authorization of such a temporary dwelling shall require the submittal of a zoning permit application available from the Zoning Administrator including a plot plan prepared according to Section 2.4(B).
2. New Home Under Construction: A temporary dwelling may be authorized by the Zoning Administrator to allow a recreational vehicle or mobile home to be placed on the lot while a permanent dwelling on the same lot is under new construction and for which a zoning permit and building permit have been issued. Application for and authorization of such a temporary dwelling shall require the submittal of a zoning permit application available from the Zoning Administrator including a plot plan prepared according to Section 2.4(B).

B. Standards

1. A temporary dwelling may be placed in any yard.
2. A temporary dwelling shall comply with the setback standards of the District for the permanent dwelling unless the Zoning Administrator determines that the location of the permanent dwelling, or other features of the lot, prohibit compliance with such setbacks, in which case the Zoning Administrator may approve a reduction of up to fifty percent (50%) of the normally required setback.
3. The temporary dwelling shall be connected to a county-approved on-site septic system, or sewer system unless the Zoning Administrator determines that the permanent dwelling continues to provide necessary potable water and sewage disposal.

C. Permit Duration and Removal:

1. No permit issued under this Section shall be issued for a duration exceeding one (1) year except that a permit shall be issued for a duration not exceeding two (2) years in the case of a temporary dwelling for the care of an elderly or ailing relative.
2. The Zoning Administrator may renew a temporary dwelling permit no more than once and such renewal shall not exceed one (1) year in duration, upon the applicant adequately demonstrating that construction delays have been beyond the control of the applicant and that construction completion is continuing in an earnest manner.
3. A temporary dwelling shall be removed from the lot no later than the termination date of the permit or within thirty (30) days of the issuance of a certificate of occupancy for the permanent dwelling, whichever comes first.

D. Temporary Visitation Exception: Nothing is this Section shall be construed to prohibit a recreational vehicle being used as a temporary dwelling on any lot on which a permanent dwelling is located for temporary visitation purposes, provided such temporary occupancy does not exceed ten (10) days in any calendar month period. A zoning permit is not necessary for such temporary occupancy.

E. Recreational Vehicles on a Vacant Lot: See Section 20.8 regarding the temporary occupancy of recreational vehicles on a vacant lot.

Section 20.8 Recreational Vehicles as Temporary Dwellings on Vacant Lots

A. Authorization/Application: The use of a recreational vehicle as a temporary dwelling on a vacant lot, and for which no zoning permit has been issued in association with a permanent dwelling, is prohibited except as approved by the Zoning Administrator according to this Section. An annual zoning permit is required for the occupancy of such a recreational vehicle. The Zoning Administrator shall approve such a permit application upon finding that the application demonstrates conformance with all requirements of this Section.

B. Standards: The use of a recreational vehicle as a temporary dwelling on a vacant lot, and for which no zoning permit has been issued in association with a permanent dwelling, shall be subject to the following limitations and requirements:

1. Districts: The lot shall be located in the RR, R-1, or R-2 Districts only.
2. Lot Area: The lot shall be a minimum of one (1) acre for the parking of one (1) recreational vehicle and shall be a minimum of one and one-half (1.5) acres for the parking of two (2) or more recreational vehicles.
3. Setbacks: Recreational vehicles shall comply with the side and rear yard setback standards of Table 3-4 of Article 3 and shall be set back from a minimum distance of one hundred (100) feet from the front lot line.
4. Time Period Restrictions
   a. No recreational vehicle shall be parked on a lot for any period of time between November 1 and May 14.
   b. No recreational vehicle shall be parked on a lot for any period of time during a calendar day, in excess of thirty (30) calendar days during any ninety (90) consecutive calendar days. In the case where the recreational vehicle is served by an on-site septic system approved by the county health department, and by electrical service from a public utility provider, the recreational vehicle shall not be located on the lot for more than sixty (60) calendar days during any ninety (90) consecutive calendar days.
5. Motorized Vehicles: If the recreational vehicle relies on its own means of travel, as in the case of a self-contained engine, the vehicle shall be operational and comply with state licensing and registration requirements.
6. Occupants: The recreational vehicle shall be occupied by the vehicle owner and/or person residing at the same permanent address as the vehicle owner.

Section 20.9 Accessory Structures and Buildings

A. Scope: Accessory structures and buildings shall be subject to the regulations of this Section except where expressly regulated otherwise by this Ordinance. No provisions of this Section shall be interpreted as authorizing accessory uses, buildings or structures that do not conform to the definitions of Article 21 pertaining to the same. For the purposes of this Section, a building shall be considered an accessory building where such building is not structurally attached to the principal building by either shared wall construction or by a fully and structurally enclosed corridor or similar fully enclosed architectural feature. An attached garage shall not be construed as an accessory building. This Section shall not apply to fences and walls.

B. Permit Required: No accessory building or structure shall be erected prior to the issuance of a Zoning Permit, provided however that a permit is not required in the case of a building or structure that is less than one-hundred twenty (120) square feet in area, unless otherwise provided by this Section, but such building or structure shall comply with all requirements of this Ordinance including height and setback standards. Applications for accessory buildings and structures shall be administered and reviewed as part of an original or proposed revised plot plan (Section 2.4(B)) or site plan (Article 6).

C. Placement/Setbacks:

1. Prohibited in Front Yard: An accessory building is prohibited in a front yard except where there is compliance with the following.
   a. Waterfront Lot. In the case of a waterfront lot, one (1) building accessory to a dwelling on the lot, shall be permitted in the front yard subject to the following limitations:
      1) The accessory building shall not exceed one-hundred twenty (120) square feet in area and no roof overhangs shall exceed twelve inches (12”).
      2) The accessory building shall not exceed ten (10) feet in height.
      3) The accessory building shall be set back a minimum of ten (10) feet from the ordinary high water mark and shall comply with all other accessory building setbacks specified in this Section.
      4) A zoning permit application is submitted and approved by the Zoning Administrator according to Section 2.4(B).

b. Non-Waterfront Lot. In the case of a lot that is not a waterfront lot, one (1) building accessory to a dwelling on the lot, shall be permitted in the front yard subject to the following limitations:
   1) The lot is a minimum of ten (10) acres in size.
   2) The accessory building does not exceed the first floor area of the dwelling, including the area of an attached garage.
   3) The accessory building is positioned so as not to block more than fifty percent (50%) of the dwelling's front elevation, as viewed from the lot's road frontage at a point perpendicular to the middle of the elevation.
   4) The accessory building is set back from the front lot line a minimum distance of two-hundred (200) feet.
   5) The Zoning Administrator makes a written determination that the accessory building cannot be accommodated in a side or rear yard in compliance with required setbacks and reconfiguring the building's shape to comply with setbacks is not practical.

2. Lot Line Setbacks: Accessory buildings and structures of less than one-hundred twenty (120) square feet in area and ten (10) feet in height shall be set back a minimum distance of five (5) feet from a side and rear lot line. Accessory buildings and structures greater than one-hundred twenty (120) square feet in area and/or greater than ten (10) feet in height shall comply with the minimum side and rear yard setback standards for the principal building according to the District in which it is located, but in no case shall such setback be less than five (5) feet.
3. Separation from Another Building: An accessory building shall not be located within ten (10) feet of another building.
4. Utilities: An accessory building or structure shall not be located so as to interfere with the proper functioning of utilities including existing and proposed back-up septic drain fields.

D. Height: Accessory buildings and structures in all districts shall comply with the maximum height standards of the principal structure on the lot according to Table 3-4 of Article 3, except that in the case of Residential Districts, the maximum height shall be twenty-five (25) feet. In the case of Residential Districts, the minimum required setback of Table 3-4 shall be increased by one (1) foot for each one (1) foot of building height in excess of fifteen (15) feet. See definition of "building height" in Article 21.

E. Area, Size and Coverage

1. Rear Yard Area: The total area of all accessory buildings shall not exceed forty percent (40%) of the area of the rear yard in which they are located, and twenty-five percent (25%) of the rear yard excluding the area contained within required setbacks.
2. Single Building Size: No single accessory building in the R-1 and R-2 Districts shall exceed twelve hundred eighty (1,280) sq. ft. in area.
3. Total Area of All Accessory Buildings: The maximum total square foot area of all accessory buildings for a dwelling shall comply with the area limitations of the following table, according to the lot area and/or district in which the lot is located. In the case of a nonconforming lot due to deficient lot area, the maximum permitted total square foot area of all accessory buildings shall be reduced by the same percentage (%) as the percentage by which the lot area is less than the minimum required lot area for the district.

District and Lot Area	Maximum Total Square Foot Area of All Accessory Buildings
RR District, irrespective of lot area.	3,000 sq. ft., plus an additional 500 sq. ft. for each one (1) acre of lot area in excess of the first ten (10) acres, but not to exceed 6,000 sq. ft.
R-1 District, irrespective of lot area.	2,000 sq. ft. plus an additional 500 sq. ft. for each one (1) acre of lot area in excess of the first one (1) acre, but not to exceed 4,000 sq. ft.
R-2 District, 15,000 sq. ft. or less in area.	Ground floor area of the dwelling, but not to exceed 1,280 sq. ft.
R-2 District, greater than15,000 sq. ft. in area.	2,000 sq. ft.
R-MF, irrespective of lot area.	15% of lot area.
R-MHC, irrespective of lot area.	15% of lot area.

4. Building Coverage and Lot Coverage: In addition to the limitations of subsections (1) – (3) above, no accessory building or structure shall be erected that results in noncompliance with the lot coverage and building coverage standards of Table 3-4 of Article 3.

F. Number: No more than three (3) accessory buildings shall be erected on a single lot.

G. Habitation of Accessory Buildings or Structures: No accessory building or structure shall be used or occupied as a dwelling except as may be authorized pursuant to Section 20.7, Temporary Dwellings.

H. Prior to a Principal Structure: Accessory buildings and structures not part of lot devoted to agriculture shall not be erected on a lot prior to the establishment of a principal structure except as authorized by this subsection (H). Nothing in this subsection (H) shall be interpreted as authorizing a building or structure not otherwise in compliance with this Ordinance.

1. RR District: Accessory buildings and structures may be erected on a lot prior to the establishment of a principal structure in the RR District provided a zoning permit application, including a plot plan, is submitted to the Zoning Administrator pursuant to Section 2.4(B) and the Zoning Administrator finds that such building or structure will not hinder the future erection of a principal building in conformance with all setback and other site development requirements of this Ordinance.
2. R-2 District Lot Adjacent to a Waterfront Lot: In the case of a R-2 District waterfront lot occupied by a dwelling, an accessory garage may be established on a separate R-2 District lot adjacent to the waterfront lot that is to be served by such garage, or on a separate R-2 District lot on the opposite side of the road where at least five (5) feet of its frontage would be adjacent to the waterfront lot frontage on which the dwelling is located if the road was not present, provided the following conditions are met:
   a. A deed restriction or similar legally binding tool is executed and filed in the county register of deeds office providing:
      1) the garage shall only be used as a garage and for the benefit of the subject dwelling.
      2) the two lots may be sold but shall remain under same ownership unless each individual lot complies with all provisions of this Ordinance including minimum standards for lot area, width and frontage.
   b. A plot plan for the garage is submitted and approved by the Zoning Administrator, with such approval being subject to the conditions specified in (a)(1) and (2) above.
   c. The garage shall not exceed twelve-hundred (1,200) square feet in floor area.
3. All Other Districts and Lots: In all districts except as provided by subsections (1) and (2) above, an accessory building may be established on a on a lot prior to the establishment of a principal structure only after the erection of the principal structure's foundation and all first floor framing.

I. Items Prohibited as Accessory Buildings and Structures: The following are prohibited as an accessory building or structure:

1. Mobile homes, irrespective of how the home may be used including for storage purposes, except as authorized by Section 20.7, Temporary Dwellings.
2. Automobiles, busses, trucks, semi-tractor trailers, storage crates or canisters designed for hauling by motor vehicle, and similar containers, vehicles and vehicle parts, converted or otherwise, except as may be authorized in association with the principal use of the lot and upon site plan approval.
3. Any use, structure or other aspect of a lot that does not conform to the definitions of Article 21 pertaining to buildings and structures.

Section 20.10 Home Occupations

A. Definitions: For the purpose of this Section and Ordinance, the following phrases and definitions shall apply:

1. Home Occupation: An occupation or profession conducted on the same lot as an occupied dwelling, accessory to and incidental to the principal residential use of the lot.
   a. Class 1 Home Occupation: A home occupation that is conducted entirely within the dwelling, including an attached garage.
   b. Class 2 Home Occupation: A home occupation that is conducted wholly or in part outdoors or in an accessory building, or which does not comply with one or more standards applicable to Class 1 home occupations according to subsection (C) below.

B. Authorization: The operating or conducting of a home occupation is permitted according to the regulations and standards of this Section.

1. Class 1 Home Occupation: A Class 1 Home Occupation is permitted as an accessory use to the principal residential use of a lot, upon application to and approval by the Zoning Administrator and the issuance of a zoning permit.
2. Class 2 Home Occupation: A Class 2 Home Occupation is permitted as an accessory use to the principal residential use of a lot and is classified as a special land use, permitted in all Residential Districts, and shall be subject to the provisions of Article 7 and the standards of subsection (C) below. A permit issued for such home occupation shall clearly delineate any conditions upon which such approval

is granted. In addition to the information required by Articles 6 and 7, an application for a Class 2 home occupation shall also include a detailed description of the character of the home occupation such as service or product offered; the number of full-time and part-time employees of the business and the frequency at which such employees will be present at the site; the type and frequency of vehicular traffic to be generated by the home occupation; the location of all parking, delivery and storage areas; and proposed landscaping/screening in association with any outdoor area, including parking and storage areas, to minimize negative impacts on nearby properties.

C. Standards: Class 1 home occupations shall comply with the following standards:

1. Secondary and Incidental: The occupation shall be clearly secondary and incidental to the use of the lot as a place of residence, and shall not result in a change to the essential residential character of the lot including both the dwelling and yard areas. The dwelling shall have no exterior evidence of the home occupation except for a sign as permitted by Article 16.
2. Disturbances: The occupation shall not produce any noise, odors, vibration, vapors, fumes or smoke detectable to normal sensory perception beyond the lot lines. No equipment or process shall be used which creates electrical interference in any radio, television, or communication receivers off the premises, or cause fluctuations in line voltage off the premises.
3. Management: A resident of the dwelling on the lot shall be actively and personally engaged in and be responsible for all home occupation operations.
4. Materials: The home occupation shall not involve the use or storage of explosive, flammable, or otherwise hazardous materials and waste not otherwise of a customary household nature. Refuse generated by a home occupation shall be safely and properly disposed of.
5. Area: The home occupation shall not occupy an area greater than twenty-five percent (25%) of the first story floor area of the dwelling.
6. Employees: No employees shall be present on the lot except employees residing in the dwelling. This limitation shall not prohibit the arrival of up to one (1) additional employee to the lot for the purpose of receiving daily instructions for work to be performed elsewhere and provided there is compliance with subsection (7) below.
7. Traffic: All traffic to and from a home occupation shall not result in more than ten (10) vehicular arrivals during the daily course of business, including those by customers, salesmen, delivery persons, or other business visitors.
8. Outdoor Areas: No portion of the home occupation shall be located outdoors including the storage of goods, equipment and machinery.
9. Hours: The home occupation shall not be open to the public between 8:00 p.m. and 8:00 a.m.
10. Display/Sale of Goods: The home occupation shall provide for no more than a total combined display and/or sales area of sixty-four (64) cubic feet.
11. Setbacks: No customer/patron off-street parking shall be permitted within a setback area.
12. Prohibited as a Home Occupation: The following are prohibited as a home occupation:
    a. Vehicle, engine or machinery repair.
    b. Equipment rental.
    c. The open storage of junk, scrap or salvage.

Section 20.11 Fences and Walls

A. Residential: Fences and walls accessory to a residential use shall comply with the following:

1. No fence or wall exceeding six feet (6') in height, measured from the ground below, shall be erected in any side or rear yard. Where the fence or wall is located on a berm, the berm height shall be included in the measurement of the fence/wall height.
2. No fence or wall exceeding three feet (3') in height, measured from the ground below, shall be erected in any front yard including the water-side yard of a waterfront lot. Such fence shall be of a unified open construction and not exceed fifty percent (50%) opacity. Where such fence is of unified open construction and not exceeding five percent (5%) opacity, the height of the fence shall not exceed four (4) feet.
3. In the case where a proposed fence or wall is within twenty (20) feet of a dwelling on an abutting lot, the finished side of the fence or wall shall face the abutting lot.
4. Fences and walls with barbs, spikes, nails, or other sharp or electrified devices are prohibited.
5. Fences and walls shall not be subject to setback requirements.
6. No fence or wall shall be erected along or near a road in such a manner as to obstruct safe, free and clear vision of oncoming traffic or vehicles attempting to access such road or negotiate movement through an intersection. See Section 20.20 regarding clear vision zones.

7. Fences and walls shall be constructed of materials designed and intended for such purposes. In no case shall a fence or wall be constructed of rotting lumber, pallets, glare-producing materials, rubbish, trash, tires, vehicle or motor vehicle component parts, tree stumps, or any materials that encourage habitats or harborage for pests and vermin.
8. All fencing and walls shall be maintained in good exterior and structural condition.
9. No fence or wall shall be erected prior to the issuance of a zoning permit.

B. Commercial, Industrial, Public, and Institutional: The location, height and character of all fences and walls proposed as part of the commercial, industrial, public and/or institutional use of a lot, or any other use of a lot requiring site plan approval pursuant to Article 6, shall be reviewed according to the site plan review provisions of Article 6. No fence or wall shall be erected prior to the issuance of a zoning permit.

Section 20.12 Setback Exceptions for Residential Outdoor Living Areas (Patios, Decks, Porches, Etc.)

A. Definition: For the purpose of this Section, "residential outdoor living area" shall be defined as an outdoor area that constitutes a structure as defined in this Ordinance and is designed or used for outdoor gathering, lounging, dining, and/or similar use, in association with a dwelling, constructed of wood, concrete, brick, stone, or similar surface or simulated surface.

B. Standards: Outdoor living areas shall comply with the dwelling setback requirements of the District in which the dwelling is located, except that any portion of an outdoor living area that is in compliance with the following standards may be set back a minimum distance of five (5) feet from a side or rear lot line and forty (40) feet from a front lot line when located in a front yard:

1. Surface Height: The portion of the outdoor living area has a walking surface no greater than six (6) inches above the ground elevation along the side and rear lot lines most proximate to the outdoor living area.
2. Vertical Features: The portion of the outdoor living area in a front yard shall have no fixed or portable features that extend higher than the surface of the outdoor living area, irrespective of whether such features are attached or not attached to the outdoor living area, except unattached furniture. The portion of the outdoor living area in a side or rear yard that may include fencing or walls shall comply with Section 20.11, irrespective of whether such features are attached or not attached to the outdoor living area.
3. Unroofed: The portion of the outdoor living area shall be unroofed.

Section 20.13 Outdoor Display, Sales and Storage

A. Definition of Materials and Products: For the purpose of this Section, "materials and products" shall include lumber piles, crates, boxes, building materials, discarded materials, trash, junk, and similar items; finished or partially finished items intended for subsequent use or sale including pipes, logs, fire wood, and figurines; and motor vehicles, items intended for tow, landscape supply materials, and other items customarily requiring outdoor storage.

B. Commercial Display and Sales: Outdoor display or sales of materials and products in association with a commercial or industrial use is prohibited except where expressly authorized pursuant to an approved site plan. Such display or sales area shall not extend into a required setback for the principal building according to Table 3-4. The maximum permitted outdoor display or sales area shall be ten percent (10%) of the use's indoor retail sales floor area except that this limitation shall not apply to the display and sales of plant nursery stock, motor vehicles, items intended for tow, or other items customarily requiring outdoor display.

1. Exception: Nothing in this subsection shall prohibit a commercial use dedicated principally to retail sales from displaying items for sale provided the display items do not extend more than five (5) feet from the wall of a building dedicated to such use and shall not exceed five (5) feet in height.

C. Commercial and Industrial Storage: The outdoor storage of materials and products in association with a commercial or industrial use, not otherwise comprising outdoor display and sales as determined by the site plan approving body, is prohibited except where the site plan approving body finds that proposed screening or enclosure of such storage area adequately minimizes negative impacts upon existing and planned surrounding land uses. Such enclosure or screen shall be subject to site plan approval. No outdoor storage of materials and products shall be located in a front yard.

Section 20.14 Shoreline Alteration

A. Definition: For the purpose of this Section 20.12, "shoreline alteration" shall be defined as the changing, transforming or otherwise varying the shoreline or shoreline bank along a lake, pond, river or stream, including the erection of a retaining wall, the depositing of boulders, and similar activities.

B. Requirements: Shoreline alteration is prohibited except where a zoning permit is issued by the Zoning Administrator upon finding that the following conditions have been met:

1. The applicant has submitted satisfactory evidence demonstrating the need for shoreline alteration to stabilize erosion.
2. The applicant has submitted satisfactory evidence demonstrating that all permits and approvals have been obtained from the Michigan Department of Environmental Quality and all other pertinent bodies including as required under the Inland Lakes and Streams Act.

Section 20.15 Outdoor Parking and Storage of Recreation Vehicles and Watercraft

A. Authorization and Limitations: The outdoor parking and/or storage of recreational vehicles and watercraft, including motorized and non-motorized watercraft, shall comply with the following:

1. The outdoor parking and/or storage of recreational vehicles and watercraft is permitted only in association with an occupied residential lot, or in association with a commercial or industrial use dedicated to recreational vehicles and/or watercraft and subject to an approved site plan.
2. The outdoor parking and/or storage of recreational vehicles and watercraft shall comply with the same setbacks as are required for the principal building according to Table 3-4 of Article 3.
3. In the case of a residential lot, all watercraft and recreational vehicles shall be titled to the owner or leasee of the lot or dwelling, and all watercraft and recreational vehicles shall have current state registration and tags affixed.

Section 20.16 Farm Markets (Roadside Stands)

A. Standards:

1. Farm markets shall comply with the most current Generally Accepted Agricultural Management Practices as published by the Michigan Agriculture Commission, including limitations on the range of products sold. All products sold shall be farm products.
2. No structure part of a farm market shall have a height greater than sixteen (16) feet, and shall be setback a minimum of twenty-five (25) feet from a front lot line and a minimum of two hundred (200) feet from a side or rear lot line that abuts a Conservation or Residential District.
3. No parking shall occur in a public right of way. An area suitable for the orderly accommodation of a minimum of eight (8) parked vehicles shall be provided. Parking facilities need not be paved.
4. Access drives shall be a minimum of twenty (20) but no greater than thirty (30) feet in width.
5. Suitable containers for rubbish shall be placed on the premises for public use.
6. The cumulative gross floor area of all buildings comprising a farm market shall not exceed two hundred and fifty (250) square feet.

Section 20.17 Outdoor Residential Swimming Pools

A. Permit/Application: No outdoor swimming pool on a residentially-used lot shall be erected prior to the issuance of a zoning permit from the Zoning Administrator, and the necessary building permits from the Building Inspector. Application for a zoning permit shall be made to the Zoning Administrator on a form for such purpose and in the case of a residential lot, shall be accompanied by a plot plan (Section 2.4(B)) that identifies the location of the pool, pool decks, adjacent buildings, fencing, and gates.

B. Standards

1. No pool or pool fencing shall be located in a front yard.
2. Setbacks for pools shall comply with Section 20.9, Accessory Buildings and Structures.
3. No pool shall be located under electrical wires and similar utility devices.
4. All swimming pools shall be designed, constructed and maintained in compliance with all building codes and the rules and regulations of county and state health departments, including cleanliness, fencing and other safety measures.
5. No swimming pool shall be occupied prior to receiving approval from the Building Inspector.

Section 20.18 Outdoor Furnaces

A. Outdoor Furnace Defined: For the purpose of this Section, "outdoor furnace" shall be defined as an accessory structure intended not to be located within a building occupied by humans or domestic animals, which is designed for heating spaces or liquids within such occupied buildings through the burning of fuel.

B. Approval Procedure: Outdoor furnaces are classified as an accessory structure and shall be subject to Zoning Administrator approval according to Section 2.4. The Zoning Administrator shall issue a zoning permit for such furnace upon finding that the application complies with the standards and regulations of this Section and Ordinance.

C. Standards: An outdoor furnace shall be installed and used only in accordance with the following provisions:

1. Construction: An outdoor furnace shall comply with all building codes of the Township and all other regulations and requirements of county, state and federal agencies. An outdoor furnace shall meet the manufacture's specification for erection and operation and shall exceed such specifications where local codes, state or federal regulations require so.
2. Lot Area, Yards and Setbacks: An outdoor furnace shall not be located in a front yard, and shall be set back a minimum of fifty feet (50') from a lot line.
3. Chimney Height: The furnace shall have a chimney that meets manufacturer's specifications for height and in no case shall a chimney be less than two (2) feet above the peak of existing buildings on adjacent and nearby lots where such buildings are within two-hundred feet (200') of the furnace.
4. Fuel: No outdoor furnace shall rely on any fuel except wood, wood pellets, corn, and agricultural seeds, provided such materials include no additives such as paints, varnishes, preservatives, resins, and glues. For clarification purposes, prohibited fuels include, but are not limited to, rubbish or garbage including but not limited to food wastes, food wraps, packaging, animal carcasses or waste, paint or painted materials furniture, composite shingles, construction or demolition debris or other household or business wastes, asphalt and products containing asphalt; plywood, composite wood or pressure treated woods; manufactured oils and used oils and items containing such oils; any plastic material including but not limited to nylon, PVC, polystyrene or urethane foam, and synthetic fabrics, plastic films and plastic containers; rubber including tires and synthetic rubber-like products; and newspaper, corrugated cardboard, container board, office paper and other similar materials.

Section 20.19 Medical Marihuana

A. Definitions: For the purpose of this Section, the following terms and phrases shall have the following meanings:

1. Marihuana: As defined in section 7106 of the public health code, 1978 PA 368, MCL 333.7106.
2. Primary caregiver: A person who is at least 21 years old and who has agreed to assist with a patient's medical use of marihuana, who has been issued and possesses a registry identification card to do so according to the Medical Marihuana Act, MCL 333.26421 et seq, and who otherwise meets the definition of a primary caregiver under the Act.
3. Qualifying patient: A person who has been diagnosed by a physician as having a debilitating medical condition, as defined by the Medical Marihuana Act, MCL 333.26421 et seq, and who has been issued and possesses a registry identification card according to the Act.

B. Authorization: The growing, distribution and use of marihuana is prohibited except as provided in this Section. The growing, possession and medical use of marihuana in accordance with the Michigan Medical Marihuana Act, MCL 333.26421 et seq, is permitted only as a Class 1 home occupation though the growing and possession of the medical marihuana may occur in an accessory structure on the premises. Such home occupation may operate within a closet, room, or other enclosed area equipped with locks or other security devices that permit access only by a registered primary caregiver or registered qualifying patient, and which may be located within the dwelling or within an accessory structure on the same lot as the dwelling.

1. Nothing in this Section shall be construed as authorizing any retail store, store front, office building, or other structure or any type of mobile unit or entity that dispenses, facilitates, stores, sells, or provides, in any manner, marihuana or cannabis or any product containing marihuana or cannabis, or any facility used to cultivate marihuana, except as a Class 1 home occupation according to the requirements of this Section.
2. Nothing in this Section shall be construed as authorizing any use of a lot for a club or other entity whose purpose includes the gathering of qualified patients to smoke or otherwise ingest marihuana.

C. Standards and Conditions: The following standards and conditions shall apply in addition to the standards of Section 18.9 for Class 1 home occupations, except where expressly provided otherwise. Where the following standards and conditions are more stringent than those of Section 18.9, the more stringent standards and conditions shall apply.

1. No medical marihuana home occupation shall be operated except in a single family dwelling or accessory structure thereto.
2. No medical marihuana home occupation shall be operated by anyone other than a primary caregiver. Such primary caregiver shall reside in the dwelling on the lot where the home occupation is occurring.
3. No more than one (1) primary caregiver residing in a dwelling shall operate a medical marihuana home occupation.
4. The growing of marihuana shall be contained in a closet, room, or other enclosed area equipped with locks or other security devices that permit access only by a registered primary caregiver according to the Medical Marihuana Act, MCL 333.26421 et seq., and such containment area shall not exceed 600 square feet in floor area.
5. No more than seventy-two (72) marihuana plants shall be grown on the lot at any one time.
6. There shall be no sign erected pertaining to the home occupation.
7. All aspects of a medical marihuana home occupation shall comply at all times with the provisions of the Michigan Department of Community Health and the Michigan Medical Marihuana Act, MCL 333.26421 et seq.

Section 20.20 Clear Vision Zones

No fence, wall, hedge, screen, sign, structure, vegetation or other obstruction shall be located so as to impede vision between the height of two and one-half (2 1/2) and ten (10) feet above road elevation on any corner lot, within twenty-five (25) feet of the intersecting road right-of-way lines. No fence, wall, hedge, screen, sign, structure, vegetation or other obstruction shall be located so as to impede vision between the height of two and one-half (2 1/2) and ten (10) feet above road elevation on any lot, within twenty-five (25) feet of the road right-of-way line and the edge of an intersecting driveway for residential use or for providing access to an off-street parking area serving a commercial, industrial, or other non-residential use, or any other use that requires ten (10) or more off-street parking spaces.

Section 20.21 Prohibited Vehicles

A. Vehicles Prohibited: The following vehicles are prohibited on a lot unless the lot is currently authorized for construction and such construction requires the use of such vehicles, or such vehicles are otherwise part of an approved home occupation:

1. Tow-truck, semi-tractor or trailer, sand and gravel hauling truck, bulldozer, grader, or other earth-moving equipment.
2. Any vehicle exceeding twenty-five (25) feet in length or fifteen (15) feet in height, or a gross vehicle weight rating of 10,000 pounds, but excluding recreational vehicles.

B. Exceptions: This Section shall not prohibit the parking or storing of agricultural vehicles and machinery on a lot devoted to agriculture for which the vehicles and/or machinery is used, the storing of buses for school or church use on lots upon which the school or church is located, or the temporary parking of County Road Commission vehicles as part of typical maintenance and construction activities.

Section 20.22 Outdoor Lighting

A. No land-based lighting shall in any way impair the safe movement of traffic on any road or lake or other waterway.

B. Lighting associated with a commercial, industrial, or other non-residential uses shall comply with the following:

1. A wall, fence, or berm, at least four (4) feet in height, shall be erected to prevent headlight glare from shining onto adjacent residential property. Such wall/fence shall in no way impair safe vertical or horizontal sight distance for moving vehicles.
2. Exterior lighting shall be designed and installed so that the surface of the source of light shall be hooded or louvered to the greatest extent practical to ensure that:
   a. all emitted light is directed downward onto the lot upon which the light source is located.
   b. light sources shall not be visible from beyond the lot lines and shall be so arranged to reflect light away from adjacent properties.
   c. no more than one foot candle power of light shall cross a lot line five (5) feet above the ground.

3. Subsections (1) and (2) above shall not apply to outdoor recreation and amusement areas, and similar outdoor use of light, provided the lighting is designed with baffling and glare guards to ensure that no more than one foot candle power of light shall cross a lot line five (5) feet above the ground in a Conservation or Residential District, and such lighting is turned off during hours the facility is closed to the public.

C. Lighting designed to illuminate residences and residential yards, driveways and walkways shall comply with the following:

1. Exterior lighting in excess of six (6) feet above the ground below shall be designed and installed so that the surface of the source of light shall be hooded or louvered to the greatest extent practical to ensure that all emitted light is directed downward onto the lot upon which the light source is located, and that the light source shall not be visible from beyond the lot lines and shall be so arranged to reflect light away from adjacent properties.
2. No more than one foot candle power of light shall cross a lot line five (5) feet above the ground, excluding light emitted from an approved neighborhood street lighting system.

Section 20.23 Site Condominiums

A. Intent: The intent of this Section is to provide regulatory standards for site condominium projects similar to those required for projects developed under other forms of ownership. This section is not intended to prohibit or treat proposed or existing condominium projects different than similar projects developed under another form of ownership.

B. Applicability of District Regulations: A site condominium project, including single family detached units, shall comply with all standards of the district within which it is located including use, setback, height, lot coverage, lot area, and lot width requirements, and all other provisions of this Ordinance. A condominium unit in a site condominium is that portion of the project intended to function generally similar to a platted subdivision lot and shall comply with the use, setback, height, lot coverage, lot area, and lot width requirements of the District within which it is located and all other provisions of this Ordinance.

C. Review and Approval Procedures:

1. Zoning Permit Required: No grading or any other form of construction shall be initiated for a site condominium prior to the approval of a final site plan and issuance of a zoning permit. The future erection of any dwelling or other structure or building in the site condominium, not expressly approved as part of the final site plan, shall require an additional zoning permit prior to erection.
2. Site Plan Approval Required: The issuance of a zoning permit shall require the submittal and approval of a preliminary and final site plan pursuant to Article 6, Site Plan Review, and master deed and bylaw documents.
   a. In addition to the preliminary and final site plan information required by Article 6, the applicant shall also submit information constituting a condominium subdivision plan, including the size, location, area, width, and boundaries of each condominium unit; building locations; the nature, location, and approximate size of common elements; and other information required by Section 66 of Michigan Public Act 59 of 1978, as amended.
3. Master Deed/Bylaws Approval Required: The applicant shall include as part of the Zoning Permit application a copy of the proposed master deed and bylaws. These shall be reviewed for compliance with Township ordinances and to ensure that an assessment mechanism has been included to guarantee adequate funding for maintenance of all common elements. The common area funding responsibility of the association shall include any necessary drainage-ways and the cost to periodically clean out such drainage ways to keep them functioning as intended in the approved plans. The master deed shall clearly state the responsibility of the owner and co-owners and shall state that all amendments to the master deed must conform to Township, County, and state laws and regulations. The Master Deed shall also include any variances granted by Township, County, or State authorities and include a hold harmless clause from these variances. All provisions of the condominium subdivision plan that are approved by the Township Board shall be incorporated, as approved, in the master deed for the condominium subdivision.
4. Issuance of Zoning Permit: Upon approval of the final site plan, by-laws and master deed, the applicant shall furnish the Zoning Administrator a copy of the final bylaws and master deed, and a copy of the approved site plan. Upon the satisfactory submittal of these documents, the Zoning Administrator shall issue a zoning permit.
5. Changes: Any changes to an approved site condominium including changes in the by-laws, master deed, or site plan, including changes in lot line or road configuration and the addition or relocation of buildings, shall require approval by the Planning Commission prior to such change.

D. Building Permit: No building shall be erected prior to the issuance of a zoning permit by the Zoning Administrator, and a building permit by the Building Inspector.

E. Utilities: The site condominium shall provide for dedication of easements to the appropriate public agencies for the purposes of construction, operation, maintenance, inspection, repair, alteration, replacement and/or removal of pipelines, conduits, mains and other installations of a similar character for the purpose of providing public utility services, including conveyance of sewage, potable water and storm water runoff across, through and under the property subject to said easement, and excavation and refilling of ditches and trenches necessary for the location of such installations.

F. Roads: All roads within a site condominium shall be designed and constructed in conformance with the standards of the County Road Commission unless otherwise approved as private roads construction pursuant to this Ordinance.

G. As-Built Plan and Occupancy: Submission of as-built plans of a condominium subdivision is required. The Township Board may allow occupancy of the project before all required improvements are installed provided that a financial performance guarantee is posted pursuant to Section 2.6.

H. Monuments: All condominium units that are building sites shall be marked with monuments as if such units were lots within a platted subdivision, and such monuments shall comply with the requirements of the P.A. 591 of 1996, the Land Division Act, as amended.

Section 20.24 Keeping of Animals as Accessory Residential Use

A. Definitions: For the purpose of this Section, the following phrases shall have the following definitions:

1. "Household pets" shall be defined to include dogs, cats, fish, birds, hamsters and other types of commonly domesticated animals maintained in a residence.
2. "Large livestock" shall be defined as horses, ponies, cattle, and other livestock that can be reasonably expected to grow to a weight greater than (300) pounds upon reaching maturity.
3. "Medium livestock" shall be defined as sheep, goats, ostrich, swine, and other livestock that can be reasonably expected to grow to a weight of between forty (40) and three hundred (300) pounds upon reaching maturity.
4. "Small livestock" shall be defined as rabbits, chickens and other fowl, and other livestock that can be reasonably expected to grow to a weight of less than forty (40) pounds upon reaching maturity, but excluding roosters.
5. "Vicious animal" shall be defined as any animal that attacks, bites, or injures human beings or domesticated animals without adequate provocation, or which because of temperament, conditioning, or training, has a known propensity to attack, bite, or injure human beings or domesticated animals.
6. "Wild animal" shall be defined as any animal that is not considered widely and commonly domesticated by humans within the State of Michigan including, but not limited to, opossum, raccoon, bear, deer, moose, elk, wolf, coyote, elephants, and wild cats such as tiger, lion, and ocelot.

B. Keeping of Wild and Vicious Animals: No wild or vicious animal shall be kept permanently or temporarily in any District.

C. Keeping of Household Pets: The keeping of household pets as an accessory use in association with any residentially-used and occupied lot is permitted provided such activities do not constitute a kennel as defined in this Ordinance, unless approval for such kennel has been granted pursuant to this Ordinance. The keeping of household pets shall comply with the following:

1. Front Yard Limitations: No outdoor pen or enclosure for such pets shall be located in a front yard.
2. Noise: Pets shall be managed so as to prohibit nuisance conditions associated with excessive noise including excessive dog barking.
3. Waste: The retention or storage of animal waste shall be managed so as not to create a nuisance due to odors, flies, fleas or other nuisance-generating conditions. The retention or storage of animal waste shall not occur within fifty (50) feet of a lot line.
4. Containment: Pets shall be contained within the dwelling or otherwise on the lot. Unrestricted or otherwise free-roaming animals are prohibited.

D. Keeping of Livestock: The keeping of livestock as an accessory use to the principal residential use of a lot is prohibited in all districts except the RR District, and shall comply with the regulations of this subsection (D). This subsection (D) shall not apply to agriculture.

1. Small Livestock:
   a. No lot used for the keeping of small livestock shall be less than one-half (1/2) acre.
   b. At no time shall the density of small livestock exceed four (4) animals per one-half acre comprising the lot.
2. Medium Livestock:
   a. The keeping of medium livestock shall occur only on parcels of two (2) acres or greater but in no case shall such livestock be kept within a platted subdivision or site condominium.
   b. At no time shall the density of such livestock exceed one (1) animal per one-half acre comprising the lot.
3. Large Livestock:
   a. The keeping of large livestock shall occur only on parcels of five (5) acres or greater but in no case shall such livestock be kept within a platted subdivision or site condominium.
   b. At no time shall the density of such livestock exceed three (3) animals for the first five (5) acres and one (1) animal per each additional one (1) acre comprising the lot.
4. Regulations Applicable to All Livestock:
   a. Livestock shall be managed by the occupants of the premises, and shall be maintained in a healthy condition.
   b. Any building or structure housing livestock shall be set back no less than fifty (50) feet from a lot line.
   c. Newly born horses, cows, donkeys, mules and other animals that exceed forty pounds (40 lbs.) in weight at birth may be maintained on said parcel for up to six (6) months irrespective of whether such maintenance would increase the permitted number of animals beyond the animal density limitations of this Section. Newly born animals that do not exceed forty pounds (40 lbs.) in weight at birth may be maintained on said parcel for no more than sixty (60) days if such maintenance would increase the permitted number of animals beyond the animal density limitations of this Section.
   d. All livestock shall be completely enclosed by a fence of adequate height, design and construction to contain the animals.
   e. The retention or storage of animal waste shall be managed so as not to create a nuisance, and in no case shall the storage of animal waste occur within one hundred fifty (150) feet of a lot line.
   f. No living quarters shall be located in any stable.
   g. The facility shall be constructed and maintained so that dust and drainage from a stable or other animal containment area shall not create a nuisance or hazard to adjoining property or uses.

Section 20.25 Temporary Non-Residential Buildings and Uses

A. Authorization: Temporary non-residential uses and buildings are prohibited except as authorized by this Section, upon approval of an application for such temporary condition. Such temporary uses and buildings may include, but shall not be limited to, field offices and tool sheds associated with new construction projects; temporary mobile homes and other buildings associated with school and religious facilities; temporary real estate offices part of a multi-unit residential development; and outdoor circuses, carnivals, theatrical exhibitions, and musical festivals.

B. Application: An applicant shall submit a completed application for a temporary non-residential building or use to the Zoning Administrator on a form established for that purpose. The application shall include a detailed description of the proposed temporary building and use, and a scaled drawing delineating the proposed location of all temporary buildings and uses, their locational relationship to existing and proposed permanent buildings and uses and required principal building setbacks, and measures to be employed to ensure the public health, safety and welfare including potable water and sewage disposal facilities, parking and traffic circulation. This requirement shall not be interpreted to require the submittal of a full site plan for the temporary condition, meeting the requirements of Article 6, unless the approving body finds such submittal information to be necessary.

C. Review and Action: The Zoning Administrator shall be responsible for the review and approval of temporary non-residential buildings and uses, except that the Township Board shall be the approving body for temporary conditions associated with a special land use or any events anticipated to attract more than one-hundred (100) persons during any single twenty-four (24) hour period. The Zoning Administrator may also refer an application to the Township Board for action in the case where, in the reasonable judgment of the Zoning Administrator, the application presents complexities or public health, safety and welfare issues that can most

adequately be reviewed and acted upon by the Township Board. The approving body may require the submittal of additional information to adequately evaluate the merits of the request. The Township Board or Zoning Administrator may refer an application to building, police and fire officials to solicit comments regarding public health, safety and welfare concerns.

D. Permit Duration, Performance Guarantee and Removal: The permit shall specify the date by which the removal of the temporary use and associated facilities shall occur, and the approving body may require a performance guarantee according to Section 2.6. A Certificate of Occupancy shall be required for temporary buildings as may be required by the State Construction Code.

1. No permit issued under this Section shall be authorized for a period exceeding thirty (30) days except in the case where the applicant demonstrates to the satisfaction of the approving body that the nature of the temporary building or use requires a longer duration, such as in the case of a model home in a subdivision serving as a real estate office for the sale of homes or lots in the subdivision. However, in no case shall such initial authorization exceed a six (6) month period and in no case shall more than one (1) additional authorization period be granted not to exceed six (6) months. The temporary condition shall be removed from the lot no later than the termination date of the permit or upon the temporary condition becoming no longer necessary, whichever comes first.

E. Approval Standards: Temporary buildings and uses shall comply with the site plan approval standards of Article 6, including setbacks, except where the approving body finds that specific standards need not apply due to the temporary nature of the use and provided the approving body determines the waiving of such standards shall not undermine the public health, safety and welfare including compatibility with surrounding land uses. In ensuring the public health, safety and welfare, the approving body shall consider demands for and accommodations for public services including police, fire, and other emergency services, and utility services, can be adequately provided. Costs for providing such services, to the extent they exceed the normal operating costs of the Township, shall be the responsibility of the owner or operator. The following additional standards and conditions shall apply:

1. In the case of a use that is intended to attract more than one-hundred (100) persons during any single twenty-four (24) hour period, or where the nature of the temporary use involves the sale of outdoor items including Christmas trees, the area of the lot on which any temporary activities shall occur, including access drives, parking, restroom facilities, and lighting, shall not be located within one-hundred fifty (150) feet of a dwelling on an adjacent lot, and the permit shall not exceed thirty (30) days in duration.

F. Garage/Yard Sales: In the case of the sale of items belonging to members of the household living on the premises where the sale is being conducted, and which is commonly referred to as a garage and/or yard sale, the maximum number of such sales shall not exceed three (3) per calendar year and each sale shall not exceed three (3) days in duration. A permit shall not be required for garage/yard sales. A garage sale shall not provide for sale any pre-packaged products produced off-premises or products purchased with the principal intent of resale.

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End of Article 20

Article 21
DEFINITIONS

Section 21.1 Construction of Language

For the purpose of this Ordinance, certain rules of construction apply to the text as follows:

A. Words used in the present tense include the future tense; and the singular includes the plural, unless the context clearly indicates the contrary.

B. The word "person" includes a corporation, association, partnership, trust, firm, or similar activity as well as an individual.

C. The word "building" includes the word "structure" and both include any part thereof.

D. The word "lot" includes the word "plot", "tract", or "parcel".

E. The term "shall" is always mandatory and not discretionary; the word "may" is permissive.

F. The word "used" or "occupied" as applied to any land or building shall be construed to include the words "intended to be used or occupied," "arranged to be used or occupied," "maintained to be used or occupied," or "designed to be used or occupied."

G. The words "this Ordinance" means the text of this Ordinance as well as all maps, tables, graphics, and schedules, as included or attached as enacted or subsequently amended.

H. Unless the context clearly indicates the contrary, where a regulation involves two or more items, conditions, provisions, or events connected by the conjunction "and," "or," "either...or," the conjunction shall be interpreted as follows:

1. "And" indicates that all the connected items, conditions, provisions, or events shall apply.
2. "Or" indicates the connected items, conditions, provisions or events may apply singly or in any combination.
3. "Either/or" indicates that the connected items, conditions, provisions, or events shall apply singly, but not in combination.

I. The "Township" is the Township of Lincoln in the County of Clare, State of Michigan. The "Township Board", "Zoning Board of Appeals" and "Planning Commission" are, respectively, the Board of Trustees, Zoning Board of Appeals, and Planning Commission of the Township.

J. Any word or term not interpreted or defined by this Ordinance shall be used with a meaning of common or standard utilization. A dictionary may be consulted.

K. Where a specific agency, department, law, or rule is referred to in this Ordinance, such reference shall include any successor agency, department, law or rule.

Section 21.2 Definitions

Abutting: The sharing of a lot line, or portion thereof, between the subject lot and another lot, easement or other feature.

Adjacent: To abut.

Accessory Building or Structure: A building or structure customarily incidental and subordinate to the principal building, and located on the same lot as the principal building except where this Ordinance expressly permits otherwise.

Accessory Use: A use customarily incidental and subordinate to the principal use of the lot, and located on the same lot as the principal use except where this Ordinance expressly permits otherwise.

Adult Foster Care Facility: An establishment licensed under Public Act 218 of 1979, as amended, that provides to adults, for compensation, supervision, personal care, and protection in addition to room and board, for 24 hours a day, five (5) or more days a week, and for two (2) or more consecutive weeks, including facilities for adults who are aged, mentally ill, developmentally disabled, or physically disabled who require supervision on an ongoing basis but who do not require continuous nursing care. A foster care facility does not include a home for the aged licensed under Article 17 of Public Act 368 of 1978, as amended, nor a nursing home licensed under Public Act 139 of 1956, as amended.

a. Family Home: An adult foster care facility consisting of a private residence with the approved capacity to receive six (6) or fewer adults, the licensee for which shall be a member of the household and an occupant of the residence.
b. Group Home: An adult foster care facility with the approved capacity to receive seven (7) but no more

than twenty (20) adults.

Agriculture: The cultivating or use of land, including associated buildings and machinery, for the commercial production of farm products including but not limited to forages and sod crops, grains and feed crops, field crops, dairy and dairy products, poultry and poultry products, cervidae, livestock, including breeding and grazing, equine, fish, and other aquacultural products, bees and bee products, berries, herbs, fruits, vegetables, flowers, seeds, grasses, nursery stock, trees and tree products, mushrooms, and other similar products, or any other product which incorporates the use of food, feed, fiber, or fur, as determined by the Michigan commission of agriculture.. "Agriculture" shall not be interpreted to include kennels, commercial stables, and similar activities that do not comprise the commercial production of farm products.

Airport: A facility for the landing, takeoff, shelter, supply, and repair of aircraft, licensed by the Michigan Department of Transportation, Bureau of Aeronautics and available to serve the general public.

Alley: An access way which affords a secondary means of access to abutting property along a side or rear yard but is not intended for general traffic circulation.

Alter/Alteration: Any change, addition or modification in construction or type of occupancy; any change in the structural members of a building, such as walls or partitions, columns, beams or girders; or any change which may be referred to herein as altered or reconstructed.

Arcade: Any business within which are located ten (10) or more amusement devices. For purposes of this definition, amusement devices shall mean any device, machine or apparatus operated by a patron which plays, exhibits, emits, produces or displays, entertainment or amusement in the form of a game, motion picture, music, performances or similar entertainment. The term does not include vending machines used to dispense items, kiddy rides, jukeboxes, bowling alleys, or pool tables, or establishments otherwise defined as sexually oriented businesses.

Assisted Living Facilities: Any facility licensed by the State of Michigan that provides residential services to adults in addition to any other services essential for sustaining the activities of daily living, and not otherwise constituting an adult foster care facility as defined in this Ordinance. Such additional services may include, but need not be limited to, the provision of meals including congregate meals, transportation services, entertainment, nursing care, and day trips.

Basement: That portion of a building comprised of two (2) walls or more that are partly or wholly below the adjacent ground elevation, but so configured that the vertical distance from the average outdoor abutting ground elevation along the entire perimeter of such walls is greater than the vertical distance from such average elevation to the ceiling. The average outdoor abutting ground elevation shall be determined by taking measurements at ten foot (10') intervals along the entire perimeter wall length that is partly or wholly below the adjacent ground elevation. A basement shall not be counted as a story. See Figure 21-1 at the end of this Article.

Bed and Breakfast: A single family dwelling occupied by the owner of the lot and which is used for the purpose of renting bedrooms on a nightly basis, including the provision of bathing and lavatory facilities and a breakfast meal for overnight guests only.

Bedroom: A room in a dwelling used or intended to be used by human beings for sleeping purposes.

Berm: A mound of earth graded and shaped in such a fashion as to be used for visual and/or audible screening purposes.

Billboard: See Article 16 for definitions pertaining to billboards and other signs.

Boarding House: A building other than a motel or hotel where for more than twenty (20) days a year lodging, meals, or both are offered to more than three (3), but less than twenty-one (21) persons at a time for compensation. A boarding house may also be commonly referred to as a lodging or rooming house.

Building: Any structure having a roof supported by columns, walls, or any other supports, which is used for housing, sheltering, storing, or enclosing persons, animals, or personal property, or carrying on business or other activities. This definition includes but is not limited to dwellings, garages, and greenhouses.

Building Code: Codes adopted by the Township pursuant to the Michigan Construction Code and fully independent of the Zoning Ordinance, that establish minimum standards for construction such as, but not limited to, standards pertaining to foundations, footings, framing, roof loads, plumbing systems, electrical systems and fire protection.

Building Coverage: The amount of a lot, stated in terms of percentage, which is covered by all buildings and structures located thereon and measured from the buildings' exterior wall faces. Where a roof extends more than three feet (3') from the building wall, the building area shall be measured from the outer limits of the roof. "Building coverage" shall not include paved and similar impervious ground surfaces including concrete and asphalt driveways, walks, and similar paved areas that do not constitute a building.

Building Height: The vertical distance measured from the average finished grade along the front of the building where it abuts the front yard to the highest point of the roof surface, except as follows: to the deck line of mansard roofs, and the average height between eaves and the ridge of gable, hip, and gambrel roofs. See Figure 21-4 at end of this Article.

Building Inspector: An individual or entity retained by the Township to administer the Michigan Construction Code.

Building Permit: Written authority by the building inspector confirming that proposed construction is in compliance with the Michigan Construction Code.

Campground: A facility where sites are offered for use by the general public and/or members of an association or club, either free of charge or for a fee, for the establishment of temporary living quarters. Temporary living quarters means a tent, recreational vehicle, or any portable temporary housing designed to be carried or towed by a vehicle and placed for temporary living quarters. “Campground” shall not be construed to include any facility or portion of a facility where such temporary housing sites are purchased by users or not owned by the facility owner, including but not necessarily limited to condominium ownership.

Cemetery: Property, including crematories, mausoleums, and/or columbariums, used or intended to be used solely for the perpetual interment of deceased human beings or customary household pets.

Certificate of Occupancy: A document issued by the building inspector certifying that the described property and/or construction on such property complies with the provisions of the Building Code and may be legally occupied.

Church: A building wherein persons regularly assemble for religious worship and which is maintained and controlled by a religious body organized to sustain public worship, together with all accessory buildings and uses customarily associated with such primary purpose. “Church” shall not be construed to mean an undertaker’s chapel or funeral home.

Club: An organization of persons for special purposes or for the promulgation of sports, arts, science, literature, politics, agriculture or similar activities, but not operated for profit nor open to the general public, and does not provide merchandise, vending, or services customarily offered on a commercial basis except incidentally for the membership and purpose of such club.

Condominium: A project consisting of two (2) or more condominium units established and approved in conformance with the Condominium Act (Public Act 59 of 1978, as amended).

Condominium Master Deed: The condominium document recording the condominium project to which are attached as exhibits and incorporated by reference the bylaws for the project and the condominium subdivision plan for the project.

Condominium, Site: A condominium project designed to function in a similar manner, or as an alternative to a platted subdivision, wherein in the condominium units function largely as lots within a platted subdivision.

Condominium Subdivision Plan: The drawings attached to the master deed for a condominium project which describe the size, location, area, horizontal and vertical boundaries and volume of each condominium unit contained in the condominium project, as well as the nature, location and size of common elements. A site condominium may not necessarily have vertical or volumetric limits.

Condominium Unit: That portion of a condominium designed and intended for separate ownership and use, as described in the master deed, regardless of whether it is intended for residential, office, industrial, business, recreational, use as a time-share unit, or any other type of use. A condominium unit may consist of either vacant land as in the case of a site condominium, or space which either encloses or is enclosed by a building. A condominium unit in a site condominium shall be equivalent to the term "lot" for the purposes of determining compliance of the site condominium with the provisions of this ordinance pertaining to minimum lot size, minimum lot width, setbacks, maximum lot coverage, and similar standards pertaining to lots.

Convalescent Home: A facility that houses persons who receive a wide range of health and support services including the provision of meals and nursing care, and may also be commonly referred to as a nursing home.

Day Care Center: A facility, other than a private residence, receiving one (1) or more preschool or school age children for care for periods of less than 24 hours a day, and where the parents or guardians are not immediately available to the child. Day care center includes a facility which provides care for not less than 2 consecutive weeks, regardless of the number of hours of care per day. The facility is generally described as a child care center, day care center, day nursery, nursery school, parent cooperative preschool, play group, or drop-in center. Day care center does not include a Sunday school, a vacation bible school, or a religious instructional class that is conducted by a religious organization or a facility operated by a religious organization where children are cared for comparatively short periods of time while persons responsible for the children are attending religious services.

Day Care, Family Home: A private home in which the operator permanently resides as a member of the household in which one (1) but less than seven (7) minor children are received for care and supervision for periods of less than 24 hours a day, unattended by a parent or legal guardian, except children related to an adult member of the family by blood, marriage, or adoption. Family day care home includes a home that gives care to an unrelated minor child for more than 4 weeks during a calendar year.

Day Care, Group Home: A private home in which the operator permanently resides as a member of the household in which more than six (6) but not more than twelve (12) minor children are given care and supervision for periods of less than twenty-four (24) hours a day unattended by a parent or legal guardian, except children related to an adult member of the family by blood, marriage, or adoption. Group day care home includes a home that gives care to more than six unrelated minor children for more than 4 weeks during a calendar year.

Deck: An exterior floor system or platform, either attached or unattached to a building, and may be supported by posts, piers or other independent supports, the surface elevation of which at any point is higher than the surrounding ground elevation.

District: See Section 3.1.

Drive-In / Drive-Through Establishment: A business establishment which by design, physical facilities, service, or by packaging procedures encourages or permits customers to receive services or obtain goods while remaining in their motor vehicles.

Driveway: A means of access for vehicles from a public road or approved private road or alley, across a lot, to a parking or loading area, garage, dwelling or other structure or area on the same lot, that is located and constructed in accordance with the requirements of this Ordinance and any requirements of the County Road Commission, and which is intended to principally serve the occupants of the lot. A driveway shall not be construed as a public or private road as defined in this Ordinance.

Dwelling, Multiple Family: A building containing three (3) or more dwelling units for three or more families living independently of each other.

Dwelling, Single Family: A detached building or portion thereof designed and used exclusively by one family for living, cooking and sleeping purposes, which meets the standards of Sec. 20.6.

Dwelling, Two Family (Duplex): A building containing two separate dwelling units.

Dwelling Unit: One or more rooms with bathroom and principal kitchen facilities designed as a self-contained unit for occupancy by one family for living, cooking, sleeping and ingress/egress purposes. In cases of mixed occupancy where a building is occupied in part as a dwelling unit, the part so occupied shall be deemed a dwelling unit and shall comply with the provisions of this Ordinance pertaining to dwellings. A mobile home shall be considered a dwelling unit but in no case shall a recreational vehicle, truck, bus, tent or other similar portable item be considered a dwelling unit.

Easement: A legally recorded grant of one or more of the property rights of a property owner to the public or another person or entity.

Erected: Anything built, constructed, reconstructed, extended, enlarged, moved upon, or any physical operations upon a lot required for such activities. Excavations, fill, grading, drainage, and the like, associated with something being erected, shall be considered a part of erection."

Essential Services: The erection, construction, alteration, or maintenance by public utilities or municipal departments of underground, surface or overhead gas, communication, telephone, electrical, steam, fuel or water transmission or distribution systems, collections, supply or disposal systems, including poles, wires, mains, drains, sewers, pipes, conduits, cables, fire alarm and police call boxes, traffic signals, hydrants and similar accessories in connection therewith which are necessary for the furnishing of adequate service by such utilities or municipal departments for the general public health, safety, convenience, or welfare, but not including communication or other towers, buildings, substations, the storage of or shelters for service equipment, maintenance depots, administrative offices, and similar above ground faculties.

Excavation: Any breaking of ground, except common household gardening, agriculture and ground care.

Extraction Operation: The removal of more than fifty (50) cubic yards in any calendar year of any earthen material, including top soil, sand, gravel, stone or any other earthen material, for the purpose of sale or use or disposition on another parcel, including mining, moving, crushing, sorting, washing, and other activities directly relating to the extraction operation. Extraction operations shall not be construed to apply to excavation activities that are necessitated by and part of the construction of a building, parking lot, or other construction project on the same lot and for which all necessary permits have been granted.

Family:

a. An individual or group of two (2) or more persons related by blood, marriage, or adoption, including foster children and servants, together with not more than two additional persons not related by blood, marriage, or adoption, living together as a single housekeeping unit in a dwelling unit; or
b. A collective number of individuals domiciled together in one dwelling unit whose relationship is of a continuing non-transient domestic character and who are cooking and living as a single nonprofit housekeeping unit. This definition shall not include any society, club, fraternity, sorority, association, lodge, coterie, organization, or group of students or other individuals whose domestic relationship is of a transitory or seasonal nature or for an anticipated limited duration of a school term or terms or other similar determinable period. This definition shall not apply in instances of group care centers, or state licensed residential facilities as established under P.A. 395 of 1976, as amended.

Farm Market: A place or an area where transactions between a farm market operator and customers take place on a seasonal or year-round basis, where at least 50 percent of the products marketed and offered for sale at the farm market including processed products, measured as an average over the farm market's marketing season or up to a five-year timeframe, are produced on and by a farm which is under the same ownership as the farm market itself. A farm market need not be located on the farm where the products for sale are produced, but the farm market site shall be under same ownership or lease as such farm and located in a District that authorizes agriculture. A farm market need not necessarily include a physical structure and may be commonly referred to as a roadside stand. The Farm Market GAAMPS prepared by the Michigan Commission of Agriculture and Rural Development shall be used as guidelines where a question may arise as to whether a particular activity or use constitutes a farm market under this definition.

Fence: An accessory structure intended to serve as an obscuring screen, physical barrier, and/or decorative landscape element.

Filling: The depositing or dumping of any matter into or onto the ground.

Floor Area, Gross: The sum of all horizontal areas of all floors of a building or buildings, measured from the interior faces of exterior walls.

Floor Area, Dwelling: The sum of the floor area of each story of a dwelling unit, measured from the interior faces of the exterior walls but excluding floor area associated with a basement, unfinished attic, attached garages, breezeways, and enclosed and unenclosed porches.

Floor Area, Usable: For the purposes of computing parking requirements, usable floor area shall be considered as that area to be used for the sale of merchandise or services, or for use to serve patrons, clients, or customers. Floor area which is used or intended to be used principally for the storage or processing of merchandise, hallways, stairways, and elevator shafts, or for restrooms and janitorial service rooms, shall be excluded from the computation of usable floor area. Usable floor area shall be measured from the interior faces of the exterior walls and includes the sum of the usable floor area for all floors unless expressly specified otherwise.

Frontage: The line that separates a lot from the adjacent road right-of-way or other access easement, and which is commonly referred to as the front lot line. "Frontage" shall also refer to the line that separates a waterfront lot from the adjacent water body. A waterfront lot shall be construed to include both road frontage and lake frontage. "Minimum frontage" refers to the total continuous length of the front lot line. See definition for "lot lines."

Garage: An accessory building or an accessory portion of a principal building designed or used primarily for the storage of non-commercial motor vehicles, boats, motor homes, snowmobiles, and similar vehicles owned and used by the occupants of the building to which it is accessory.

Gas and Oil Processing Facilities: Any facility and/or structure used for, or in connection with, the production, processing or transmitting of natural gas, oil, or allied products or substances, and the injection of same into the ground for storage or disposal, not under the exclusive jurisdiction or control of the Geological Survey Division, Department of Environmental Quality or Public Service Commission, pursuant to the Michigan Zoning Enabling Act.

Gasoline Service Station: A place used primarily for the retail sale and dispensing of fuel or lubricants together with the fixed equipment from which the fuel is dispensed directly into motor vehicles, and where minor automobile repairs may occur such as engine tune-ups and servicing of brakes, air conditioning, and exhaust systems; oil change or lubrication; wheel alignment or balancing; or similar servicing or repairs that do not normally require any significant disassembly or storing the automobiles on the premises overnight. A service station may also include floor area devoted to the sale of convenience items such as beverages, food products, and magazines, and similar convenience items, where such retail sales are authorized in the respective district.

Home Occupation: See Section 20.10.

Hospital: An institution that is licensed by the State of Michigan to provide in-patient and out-patient medical and surgical services for the sick and injured, and which may include such related facilities as laboratories, medical testing services, staff offices, pharmaceutical services, and other support facilities and services.

Hotel/Motel: A building or group of buildings, whether detached or in connecting units, used as individual sleeping or dwelling units designed primarily for transient automobile travelers. The term "hotel" shall include buildings designated as motels, auto courts, tourist cabins and courts, motor courts, motor hotel, and similar lodging arrangements which are designed as integrated units of individual rooms under common ownership. A hotel shall not be construed as a multiple family dwelling. A hotel may include support services, including recreation facilities and the serving of meals, where approved for such.

Junkyard: Any outdoor area or building used for: 1) the abandonment, storage, keeping, collecting, selling, exchanged or baling of scrapped, worn out, abandoned or discarded materials, which may include but need not be limited to paper, rags, glass, cans, bottles, appliances and construction materials; and/or 2) the abandonment, demolition, dismantling, storage, keeping, collecting, selling, exchanging or salvaging of machinery, automobiles or other vehicles not in normal running condition, or parts thereof. A junkyard may also be referred to as a salvage yard.

Kennel: A lot or premises on which three (3) or more dogs, or three (3) or more cats, or three (3) or more similar animals, three (3) months of age or older, are kept for compensation, either permanently or temporarily, for the purposes of breeding, boarding, housing, leasing, sale, or transfer.

Landscaping Services: A lot used for offices purposes, along with the storage of supplies and equipment, in association with the provision of landscape services to off-site locations. Landscape services may include lawn mowing and maintenance, snow removal, landscape design and installation, and the sale and delivery of landscape materials such as mulch, plants, seed, fertilizer, gravel, soil, pavers, and similar landscape supplies.

Livestock: Cattle, horses, sheep, goats, swine, poultry, and other similar domestic animals or fowl normally kept or raised on a farm.

Lot: A tract of land occupied, or intended to be occupied, by one or more buildings or uses, together with such yards and open spaces as are required under the provisions of this Ordinance, and which is described as a platted lot or portion thereof or a tract of land described by metes and bounds or a portion of such parcel described by metes and bounds. A lot may or may not be specifically designated as such on public records. Within a site condominium, a condominium unit shall be synonymous with a lot for the purposes of compliance with this Ordinance. See Figure 21-2 at end of this Article.

Lot Area: The area of the horizontal plane within the lot lines of a lot, exclusive of any public or private road right-of-way or easement abutting any side of the lot, except that one-half (1/2) of the area of an alley easement or right-of-way adjacent to a lot, which provides secondary access to the lot and is no greater than sixty-six (66) feet in width, shall be included within the lot area calculation.

Lot, Corner: Any lot having at least two (2) contiguous sides abutting upon one or more streets, provided that the interior angle at the intersection of such two sides is less than one hundred thirty-five (135) degrees. A lot abutting a curved road(s) shall be a corner lot if the arc has a radius less than one hundred and fifty (150) feet. See Figure 21-2 at end of this Article.

Lot Coverage: The amount of a lot, stated in terms of a percentage (%), which is covered by all buildings and structures located thereon in addition to all areas comprised of wood, asphalt, concrete, stone, brick and similarly hard-surface materials and simulated materials of the same, but shall not include fences or walls.

Lot Depth: The distance from the front lot line of the lot to its opposite rear line, measured midway between the side lot lines.

Lot Lines: The lines bounding a lot. See Figure 21-4 at end of this Article.

a. Lot Line, Front:
   1. In the case of a lot not located on a corner, the line separating said lot from the road right-of-way or easement from which it gains access.
   2. In the case of a corner lot, the front lot line shall be the shorter of the two (2) lines separating said lot from the adjacent road right-of-ways or easements unless designated otherwise on a recorded plat.
   3. In the case of a through lot, the front lot line shall be as designated on the plot plan or site plan, subject to approval of such plan.
   4. In the case of a flag lot, the front lot line shall be the interior lot line most parallel to and nearest the road from which access is obtained.
   5. In the case of a waterfront lot, the front lot line shall be the line comprising the ordinary high water mark or, where a seawall has been erected, the edge of the water along such seawall.

b. Lot Line, Rear: The lot line opposite and most distant from the front lot line. In the case of a triangular or otherwise irregularly shaped lot or parcel, an imaginary line at least ten feet in length entirely within the lot or parcel, parallel to and at a maximum distance from the front lot line.

c. Lot Line, Side: Any lot line other than a front or rear lot line (*see Figure 21-3 at end of Article).*

Lot, Waterfront: A lot having frontage on a natural lake that has an average annual surface area of twenty (20) acres or more. For the purpose of this definition, “natural lake” shall be defined as a water body that exists due to predominantly natural landform depressions and drainage patterns. A “natural lake” shall not include a water body substantially formed by dredging, the removal of earth and similar man-made landforms.

Lot, Through: A lot having frontage on two (2) roads other than a corner lot *(see Figure 21-2).*

Lot Width: The straight line horizontal distance between the side lot lines, measured at the required front yard setback line.

Manufactured Housing: A dwelling unit which is designed for long term residential use and is wholly or substantially constructed at an off-site location. Manufactured housing includes mobile homes and modular housing units.

Manufactured Housing Community: A parcel or tract of land under the control of a person upon which 3 or more mobile homes are located on a continual, non-recreational basis and which is offered to the public for that purpose regardless of whether a charge is made therefore, together with any building, structure, enclosure, street, equipment, or facility used or intended for use incident to the occupancy of a mobile home.

Marina: A constructed facility that extends along and/or into or over a lake or stream, the primary purpose of which is to offer services to the public or private members of the facility for the docking of recreational water-craft, and may also offer accessory services such as the loading and unloading of watercraft into and out of the water, servicing and repair of watercraft, parking for persons using marina facilities, and the sale of boating supplies. The term marina shall not apply to a dock whose principal function is to serve the occupants of a dwelling on the same lot on which the dock is located.

Master Deed: The document recorded as part of a condominium subdivision to which are attached as exhibits and incorporated by reference the approved bylaws for the condominium subdivision and the condominium subdivision plan.

Master Plan: The officially adopted policies of the Township addressing community growth, development, land use, and preservation, prepared according to Michigan planning enabling law and consisting of maps, charts, and written material.

Medical Clinic: An establishment where human patients, not lodged overnight, are admitted for examination and treatment by two (2) or more physicians, dentists, or similar professionals. A medical clinic may incorporate customary laboratories and pharmacies incidental to or necessary for its operation or to the service of its patients, but may not include facilities for overnight patient care or major surgery.

Mini Storage: A building or group of buildings in a controlled access or fenced area that contains individual compartmentalized and controlled access stalls or lockers for the storage of customer's goods or wares which are generally not used on a daily basis.

Mobile Home: A structure, transportable in one or more sections, which is built on a chassis and designed to be used as a dwelling with or without permanent foundation, when connected to the required utilities, and includes the plumbing, heating, air-conditioning, and electrical systems contained in the structure. The term “mobile home” shall not include pick-up campers, travel trailers, motor homes, modular homes, recreational vehicles, converted buses, tent trailers, or other transportable structures designed for temporary use.

Motor Home: A self-propelled, licensed vehicle prefabricated on its own chassis, intended for recreational activities and temporary occupancy.

Nonconforming Building or Structure: A building or structure (or portion thereof) lawfully existing at the time of adoption of this Ordinance or a subsequent amendment thereto, that does not conform to the provisions of this Ordinance relative to height, bulk, area, placement, yards or similar features for the District in which it is located.

Nonconforming Lot: A lot lawfully existing at the effective date of this Ordinance, or affecting amendment, and which fails to meet the area and/or dimensional requirements of the District in which it is located.

Nonconforming Use: A use of a building or structure, or of a parcel or tract of land, lawfully existing at the time of adoption of this Ordinance or subsequent amendment thereto, that does not conform to the regulations of the District in which it is located.

Ordinary High Water Mark: The line between upland and bottomland which persists through successive changes in water levels below which the presence and action of the water is so common or recurrent that the character of the land is marked distinctly from the upland and is apparent in the soil itself, the configuration of the surface of the soil, and the vegetation. On an inland water body that has had a level established by law, the ordinary high water mark shall mean the established maximum level.

Owner: The owner of the premises or lesser estate in the premises, a mortgagee or vendee in possession, an assignee of rents, receiver, executor, trustee, leasee, or any other person, sole proprietorship, partnership, association, or corporation directly or indirectly in control of a building, structure, or real property, or his or her duly authorized agent.

Parcel: A lot described by metes and bounds or described in a recorded plat.

Parking Space: An area of definite length and width as designated in this Ordinance for parking an automobile or other vehicle, and which is fully accessible for such purposes.

Plat: A map of a subdivision of land recorded with the Register of Deeds pursuant to the Land Division Act of 1996, as amended, or a prior statute.

Planned Unit Development: A form of development permitted in the Planned Unit Development District, upon review and approval under the provisions of the District, that incorporates variations in the traditional controls related to density, land use, setbacks, open space and/or other design elements, to result in a beneficial project that would not be possible under the limitations of other districts.

Plot Plan: A plan showing all salient features of a proposed development, so that it may be evaluated in order to determine whether it meets the provisions of this Ordinance. A plot plan generally contains less comprehensive and detailed information about improvements proposed on the site than does a site plan, and is required for such uses as single family dwellings and two family dwellings. Plot plan approval is generally delegated to the Zoning Administrator.

Principal Building: The main building on a lot in which the principal use exists or is served by.

Principal Use: The main use to which the premises are devoted and the main purpose for which the premises exist.

Private Landing Strip: A cleared and level area used by the owner or lessee of the premises for the operation and maintenance of personal aircraft only, and recognized by a state authorized body.

Public Facility: Land and associated structures and buildings used to carry out a governmental function(s) or provide a governmental service(s), such as a use or service owned or managed by a city, village, township, county, state, or public school board, and including commissions or other arms of such entities. Examples of such facilities include, but are not necessarily limited to, municipal parks and cemeteries, museums, police and fire protection facilities, courts of justice, and government offices.

Public Utility: Any person, firm, or corporation, municipal department, board or commission duly authorized to furnish and furnishing under federal, state, or municipal regulations to the public; water, gas, steam, electricity, sewage disposal, communication, transportation or water.

Recreational Vehicle: A vehicle primarily designed and used as temporary living quarters for recreational, camping, and/or travel purposes, including a vehicle having its own motor power or an enclosed space mounted on or drawn by another vehicle, and which may be commonly referred to as motor homes, pickup campers, fifth wheel trailers, travel trailers, and tent trailers; provided, however, that any such vehicle or unit which is forty (40) feet or more in overall length and connected to water or sewer facilities shall be considered a mobile home and shall be subject to all regulations of this Ordinance applicable to a mobile home.

Recycling Center: A facility where material is separated and processed prior to shipment for use in the manufacturing of new products. A recycling center is distinct from a junkyard or a salvage yard. A facility that functions as an accessory use that enables the general public to drop off products such as bottles, cans, plastics, and newspapers, without the payment of a fee of any kind and which is commonly referred to as a "transfer station," for subsequent transport to another off-site facility, shall not be construed as a "recycling

center."

Resort: A facility that provides overnight lodging to the general public and provides one (1) or more of the following activities to its patrons on the same site as the overnight lodging, irrespective of whether a fee may be required for such activities: golf, skiing, dude ranching, recreational farming, snowmobiling, pack trains, bike trails, boating, swimming, hunting and fishing, and related or similar uses normally associated with recreational activities.

Restaurant: A facility in which food or beverages are prepared and offered for sale for consumption on the same premises or for delivery to another location or for pick-up from another location. A banquet hall and catering service shall not be construed as a restaurant. A restaurant may be one (1) or a combination of the following:

Standard Restaurant: A restaurant whose principal method of operation includes one or more of the following characteristics:

a. customers, normally provided with an individual menu, are served their food and beverage by a restaurant employee, at the same table or counter at which food and beverage are consumed, within a building.
b. a cafeteria-type operation where food and beverage are consumed within a building.

Delivery Service Restaurant: A restaurant that includes as part of its operations the delivery of food service to the customer at another location.

Take-Out Restaurant: A restaurant that includes as part of its operations the serving of customers from a counter for consumption by the customer off-site.

Drive-Through Restaurant: A restaurant that includes as part of its operations the serving of customers in motor vehicles from a window.

Drive-In Restaurant: A restaurant that includes as part of its operations the serving of customers by a delivery service from the restaurant building to the customer in the customer's vehicle other than by a window, for consumption in the vehicle on the restaurant property.

Restoration: The reconstruction or replication of an existing building's original architectural features.

Retreat Center: A facility used for professional, educational, or religious conclaves, meetings, conferences, or seminars and which may provide meals, housing and recreation for participants during the period of the retreat or program only, and provided all kitchen facilities are limited to a single centrally located building and not within individual sleeping quarters. This term shall not apply to facilities utilized by the general public for meals or overnight accommodations.

Right-of-Way: A public or private road, alley, or other thoroughfare or easement permanently established for passage of persons, vehicles, or the location of utilities. A right-of-way is delineated by legally established lines or boundaries.

Right-of-Way Line: The legal line of demarcation between a right-of-way and abutting land.

Road: A thoroughfare that affords the principal means of access to abutting property. The term "road" also includes the term "street."

Road, Private: A private way or means of approach for use and operation of vehicular traffic that is not dedicated for general public use, is owned by persons, an association, or other legal entity, and the maintenance for which is the responsibility of the owners, and provides access to two (2) or more abutting lots.

Road, Public: Any public thoroughfare dedicated and maintained for the use and operation of vehicular traffic by the County Road Commission.

Sawmill: A facility of a permanent nature where harvested trees are cut, split, shaved, stripped, chipped or otherwise processed to produce wood products including the processing of harvested trees that may be transported to the sawmill facility, but excluding a temporary sawmill and the harvesting of trees for use on the same lot by the owner or resident of that lot.

Setback: The minimum distance by which any specified building, structure, or use must be separated from a lot line or other specified feature. In the case of a required building front, side or rear yard setback, the setback shall be measured from the respective lot line to the nearest foundation wall or other feature of the building projecting into the respective yard unless provided for elsewhere in this Ordinance and (1) below.

1) Where a chimney, bay window, steps leading to an exterior door and any raised unroofed platforms in front of an exterior door or otherwise adjacent to a building wall, and which may be referred to as a uncovered porch, or similar architectural feature, extends from the building's principal foundation wall or footing and occupies more than twelve (12) sq. ft. of extended area beyond the building's principal foundation wall or footing, the setback shall be measured from the respective lot line to the nearest point of the extension.

Sexually Oriented Business: Refer to Article 18, Section ___ for definitions pertaining to sexually oriented businesses.

Shooting Range: An outdoor or indoor facility designed for and devoted to the shooting of firearms or archery equipment, including what are commonly referred to as a gun club, hunt club, sportsman club, rifle range, pistol range, trap/skeet range, sporting clay range, and archery range.

Sign: See Article 9 for sign definitions.

Site Plan: A plan showing all salient features of a proposed development, so that it may be evaluated in order to determine whether it meets the provisions of this Ordinance. A site plan contains more comprehensive and detailed information about improvements proposed on the site than does a plot plan because of the more complex nature of land uses required to receive site plan approval, such as business, industrial, and multiple family developments. See Article 6.

Special Land Use: Uses and structures which are generally accepted as reasonably compatible with the primary uses and structures permitted in a District, but could present potential injurious effects upon the primary uses and structures within the District or are otherwise unique in character, and therefore require special consideration in relation to the welfare of adjacent properties and to the Township as a whole. All such uses are subject to a public hearing. See Article 7.

Stable, Commercial: A facility that meets one (1) or more of the following conditions:

a. Six (6) or more horses may be present on the lot at any single time, irrespective of compensation in association with one (1) or more of the horses.
b. A facility where horse shows, training exhibitions, riding academies, or similar events and activities are conducted, irrespective of the frequency or size of such events and activities.
c. A facility where horses, other than those owned by the facility operators, are provided training services and/or where training or riding lessons are offered.

Stable, Private: A structure housing horses, accessory to a residence and irrespective of compensation, where no more than five (5) horses are present on the lot at any single time.

Stop Work Order: An administrative order which is either posted on the property or mailed to the property owner which directs a person not to continue, or not to allow the continuation of an activity which is in violation of this Ordinance.

Story: That portion of a building included between the upper surface of any floor and the upper surface of the floor or ceiling next above it, or if there is no floor above it, then the space between the floor and the ceiling next above it. A basement as defined herein shall not be counted as a story. A "mezzanine" floor shall be deemed a story when it covers more than fifty percent (50%) of the floor area of the story below the mezzanine, or if the vertical distance from the floor below the mezzanine to the next floor above the mezzanine is twenty-four (24) feet or more. An attic shall constitute a story when more than fifty percent (50%) of the floor area of the attic has a ceiling height of at least seven feet-six inches (7'6").

Story, Half: The uppermost story lying under a pitched roof, the usable floor area of which has a minimum clear height of seven (7) feet six (6) inches, is a minimum of one-hundred sixty (160) square feet, and does not exceed one-half (1/2) of the floor area of the story below.

Street: See "Road."

Structure: Anything constructed or erected, the use of which requires permanent location on the ground or attachment to something having such location on the ground including but not limited to all buildings, independently supported decks, satellite dishes and free-standing signs, but excepting anything lawfully in a public right-of-way including but not limited to utility poles, sewage pumping stations, utility manholes, fire hydrants, electric transformers, telephone boxes, and related public facilities and utilities defined as "essential services." "Structure" shall not be construed to include paved surfaces such as sidewalks and roads except where otherwise provided in this Ordinance.

Swimming Pool: A constructed basin or structure for swimming and aquatic recreation, except that basins or water containment devices that hold less than five hundred (500) gallons of water and are generally portable upon their emptying shall not be considered a swimming pool.

Tavern: An establishment, or portion thereof, serving alcoholic beverages for principal consumption on the premises.

Township Engineer: The licensed staff engineer of the Township or a licensed engineer the Township may hire from time to time as needed.

Truck Terminal: A building or area in which freight brought by truck is assembled or stored for further routing or reshipment, or in which trailers are parked or stored during the interim between hauling runs, and may include accessory repair and maintenance services and other support facilities and services such as restroom and shower facilities.

Use: The purpose for which land or a building is arranged, designed or intended, or for which land or a building may be occupied.

Variance: A variance is a modification of the literal provisions of the Zoning Ordinance where such variance will not be contrary to the public interest and will mitigate an otherwise practical difficulty, and the issuance of which is based upon standards in this Ordinance. See Article 16.

Vehicle/Car Wash: A building, or portion thereof, designed and used for the washing of two (2) or more vehicles irrespective of whether the washing process is automated or performed manually.

Veterinary Clinic: An establishment which is licensed by the Michigan Department of Community Health to provide for the care, diagnosis, and treatment of sick or injured animals, including those in need of medical or surgical attention. A veterinary clinic may include fully enclosed pens or cages for the overnight boarding of animals receiving medical treatment and such related facilities as laboratories and offices.

Vehicle Repair Shop: Buildings and premises for the purpose of engine rebuilding, rebuilding or reconditioning of motor vehicles, collision service such as body, frame and fender repair, and painting.

Wireless Communication Facilities: All structures and accessory facilities relating to the use of the radio frequency spectrum for the purpose of transmitting or receiving radio signals; including, but not limited to, radio towers, television towers, telephone devices and exchanges, microwave relay facilities, telephone transmission equipment buildings, private and commercial mobile radio service facilities, and cellular telephone towers. Not included in the definition are: citizen band radio facilities; short wave receiving facilities; radio and television broadcast reception facilities; satellite dishes; federally licensed amateur (HAM) radio facilities, towers for personal communications only, and governmental facilities which are subject to state or federal law or regulations which preempt municipal regulatory authority. See Article 7 for additional terms and definitions pertaining to wireless communication facilities.

Yard: An open space, on the same lot with a principal building, unoccupied and unobstructed from the ground upward by a building or structure, except as otherwise permitted in this Ordinance and as defined herein *(see Figure 21-4 at end of this Article):*

a. Front Yard**:** An open space extending the full width of the lot, the depth of which is the minimum horizontal distance between the front lot line and the principal building or other feature as may be specified. See definition for “lot lines” as applied to corner lots, waterfront lots and through lots. A corner lot shall be construed to have two (2) front yards.
b. Rear Yard**:** An open space extending the full width of the lot, the depth of which is the minimum horizontal distance between the rear lot line and the principal building or other feature as may be specified. In the case of corner lots, there shall only be one (1) rear yard which shall be determined by the owner at the time of plot plan approval. See definition for “lot lines” as applied to corner lots and through lots.
c. Side Yard**:** An open space between the principal building or use and the side lot line, extending from the front yard to the rear yard, the width of which is the horizontal distance from the nearest point of the side lot line to the principal building or other feature as may be specified.

Zoning Administrator: The authorized individual charged with the responsibility of administering this Ordinance and appointed by the Township Board of Trustees.

Zoning District: See Section 3.1

Zoning Permit: Written authority signifying compliance with the provisions of this Ordinance and issued by the Zoning Administrator upon approval of the proposed land use or development plan by the designated approving body.

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Figure 21-1: BASEMENT and STORY

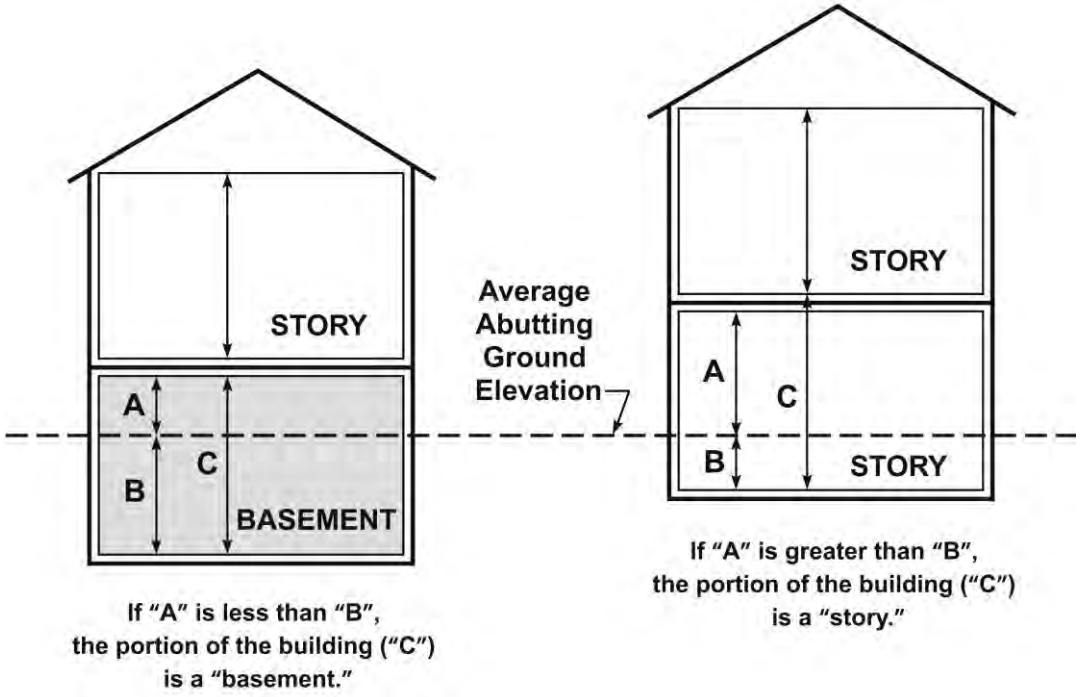


Figure 21-2: LOT TYPES

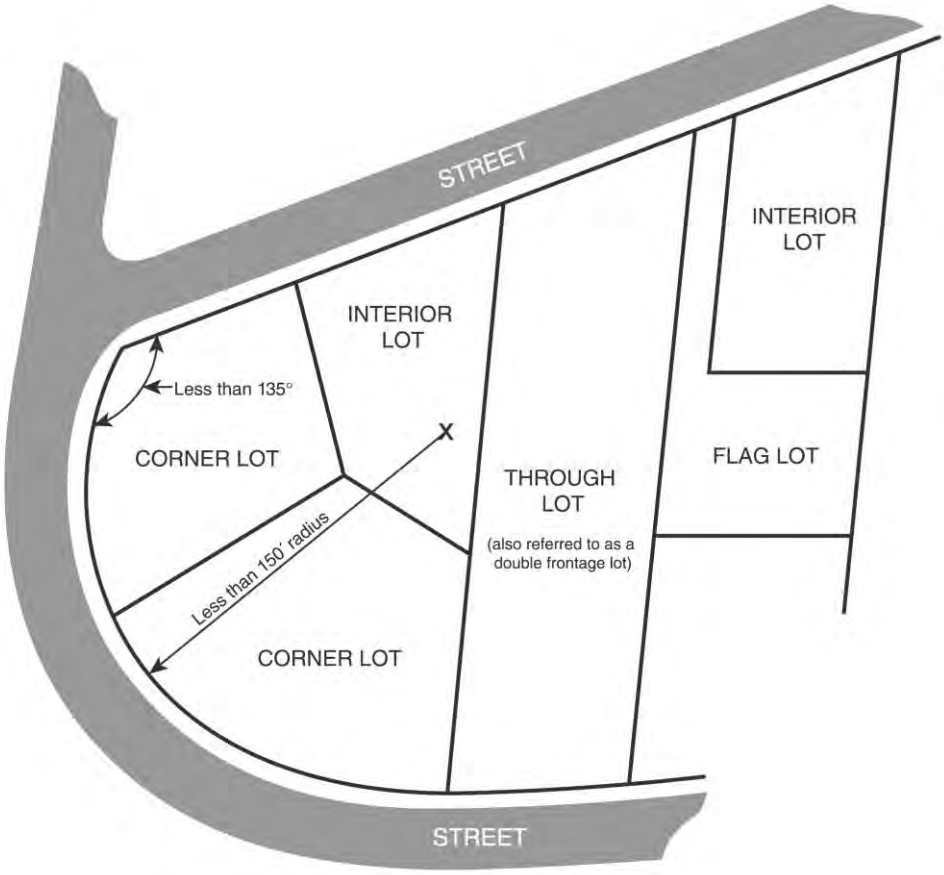


Figure 21-3
BUILDING HEIGHTS

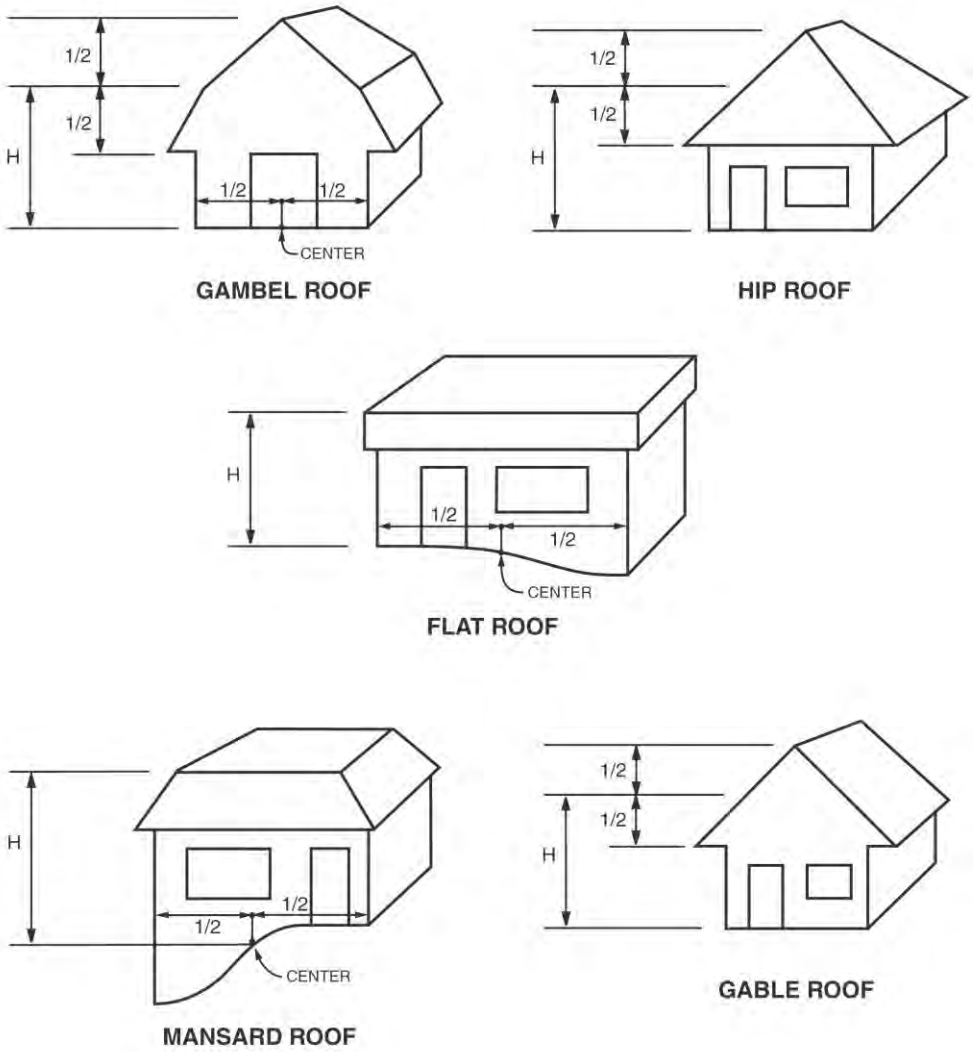
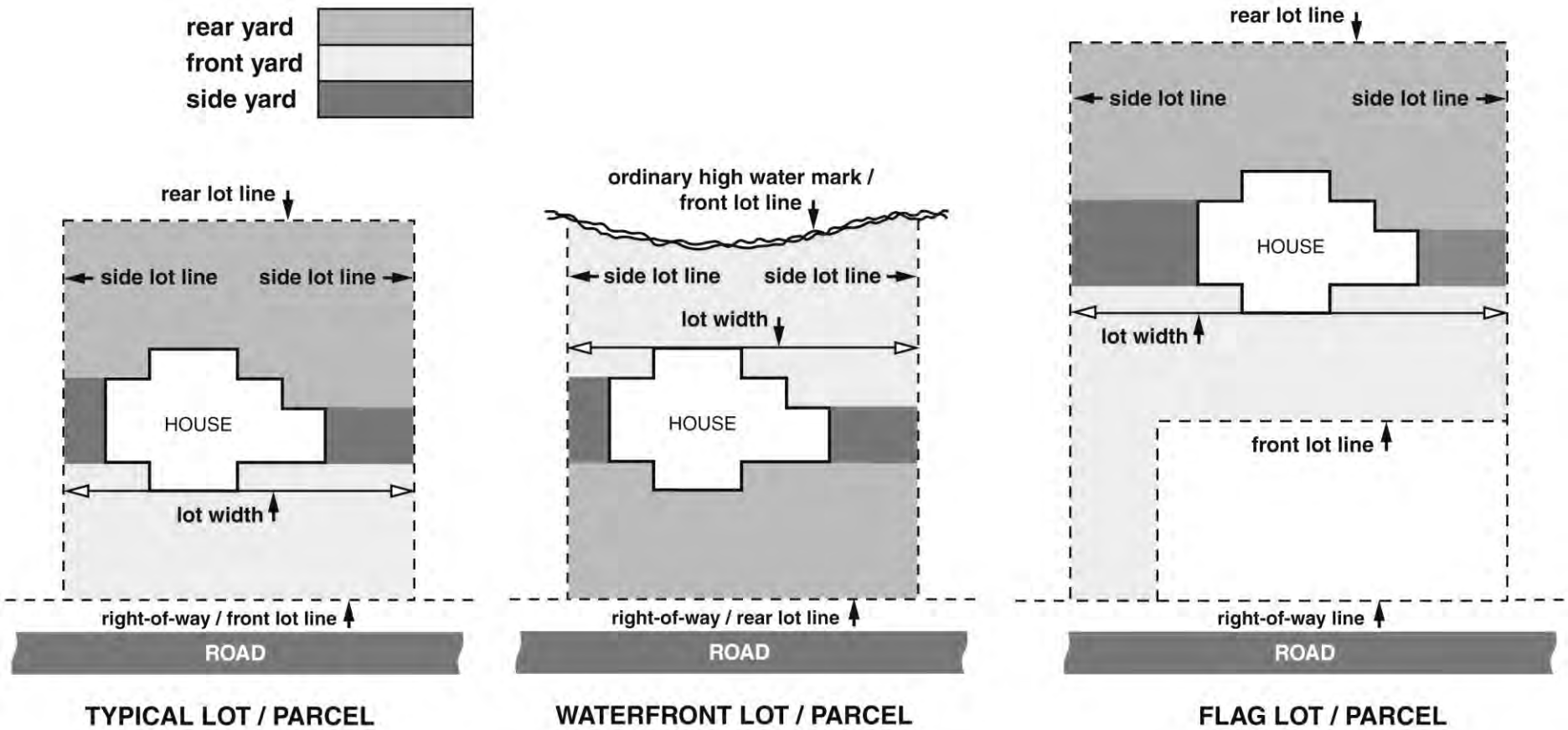


Figure 21-4
LOT LINES and YARDS



End of Article 21

Article 22
INTERPRETATION, SEVERABILITY, VESTED RIGHT, REPEAL, and EFFECTIVE DATE

Section 22.1 Interpretation

A. Minimum Requirements: In interpreting and applying the provisions of this Ordinance, they shall be held to the minimum requirements adopted for the promotion of the public health, safety, comfort, convenience, and general welfare.

B. Maintenance of Existing Law and Rules: Unless specifically provided for, it is not intended by this Ordinance to repeal, abrogate, annul or in any way to impair or interfere with the existing and unrepealed provision of law or ordinance or any rules, regulations or permits previously adopted or issued pursuant to law relating to the use of building or land, subject to subsection (C) of this Section.

C. Controlling Provisions: Where this Ordinance imposes a greater restriction upon the use of buildings or structures or land or upon the courtyards or other open spaces than are imposed or required by such existing provisions of law or ordinance or by such rules, regulations or permits, the provisions of this Ordinance shall control.

Section 22.2 Severance Clause

Sections of this Ordinance and amendments thereto shall be deemed to be severable and should any section, paragraph, or provision thereof be declared by the courts to be unconstitutional or invalid, such declaration shall not affect the validity of this Ordinance as a whole or any other part thereof, other than the part so declared to be unconstitutional or invalid by court decree. Further, if any court shall declare invalid the application of any provision of this Ordinance to a particular parcel, lot, land, use, building or structure, such ruling shall not affect the application of said provision to any other parcel, lot, land, use, building or structure not specifically included in said ruling.

Section 22.3 Vested Right

Nothing in this Ordinance shall be interpreted or construed to give rise to any permanent vested rights in the continuation of any particular use, district, zoning classification or any permissible activities therein; and, they are hereby declared to be subject to subsequent amendment, change or modification as may be necessary to the preservation or protection of public health, safety, and welfare, except as provided in Article 6, Nonconforming Lots, Uses and Structures.

Section 22.4 Repeal

The Lincoln Township Zoning Ordinance adopted on August 12, 1996, and amendments thereto, is hereby repealed as of the effective date of this Ordinance. The repeal of such ordinance and its amendments does not affect or impair any act done, offense committed or right accrued or acquired, or liability, penalty, forfeiture or punishment incurred prior to the time it was enforced, prosecuted or inflicted.

Section 22.5 Effective Date

This Ordinance shall take effect eight (8) days following adoption and upon publication of a notice of adoption in accordance with the provisions of the Michigan Zoning Enabling Act, PA 110 of 2006, as amended. Made and passed by the Township Board of the Township of Lincoln, Clare County, Michigan on _____ , 2016.

End of Article 22